BY ORDER OF THE COMMANDER
MOUNTAIN HOME AIR FORCE BASE

AIR FORCE MANUAL 31-116

MOUNTAIN HOME AIR FORCE BASE SUPPLEMENT

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Security

AIR FORCE MOTOR VEHICLE TRAFFIC SUPERVISION

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This supplement assigns responsibilities and establishes procedures for motor vehicle traffic supervision on Mountain Home Air Force Base (MHAFB), Idaho. This includes, but is not limited to, granting, suspending, or revoking the privilege to operate a privately owned (POV) and/or government owned vehicles; registration of POVs; administration of vehicle registration and driver performance records; driver improvement programs; police traffic supervision; and off-installation traffic activities. This supplement to the basic instruction is applicable to all Air Force, Department of Defense (DoD) members, civilian personnel assigned to or visiting MHAFB, Idaho, their dependents, and to all owners and operators of a motor vehicle on MHAFB. This instruction requires the collection and maintenance of information protected by the Privacy Act of 1974 authorized by 50 United States Code 797. This publication requires the collection and or maintenance of information protected by the Privacy Act of 1974 authorized by Title 10 United States Code, Section 8013, and DoD Directive 7730.47, Defense Incident-Based Reporting System (DIBRS). The applicable Privacy Act SORN(s) F031 AF SF B, Security Forces Management Information Service, is available at **http://privacy.defense.gov/notices/usaf/**. Records Disposition: This publication applies to ANG units and the Air Force Reserve Command (AFRC) operating on Mountain Home AFB (MHAFB). Waivers will not be granted for any part of this publication. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) Air Force Manual (AFMAN) 33-363, Management of Records, and disposed of IAW Air

Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). Contact supporting records managers as required. Refer recommended changes and questions about this publication to the OPR using AF Form 847, Recommendation for Change of Publication, route AF Forms 847 from the field through the appropriate functional' s chain of command. See Attachment 1 for a Glossary of References and Supporting Information.

SUMMARY OF CHANGES

This publication has been revised to reflect changes in delegated authorities and office symbols. Changes also include incorporating recommendations from the Compliance Statement Standard review, updating references, and complying with AFI 33-360 requirements.

1.2. **Responsibilities.** The DFC will assist the Traffic Safety Control Board in the administration of traffic code/laws to develop ways to improve traffic conditions.

1.2.1. **(Added)** ***366th Security Forces Squadron (366 SFS).*** The 366 SFS is responsible to the DFC for directing, regulating, and controlling traffic, and the enforcement of this publication, as well as all applicable assimilated federal/state traffic codes/laws. This responsibility includes, but is not limited to: (1) issuance of traffic citations; (2) apprehension/detention of offenders when warranted; (3) investigation of traffic accidents; (4) assist in traffic engineering functions by participating in traffic control studies designed to obtain information on traffic problems and usage patterns. 366 FW/A7SR, Security Administration Branch is located at 366 Gunfighter Avenue, Building #512, Room 2002B, at Mountain Home AFB, Idaho 83648 and operates under the direction of the Director 366 FW/A6/7. 366 FW/A7SR is responsible for maintaining a complete records database containing all traffic violations occurring on MHAFB, and all civil arrests, driving under the influence (DUI), and driving while intoxicated (DWI) violations involving personnel assigned to MHAFB, to include all revocations, suspensions and debarments to the installation.

1.2.1.1. **(Added)** The collection of information regarding off-base offenses is completed through liaison checks, notification by the issuing agency, or the individual(s) involved in the incident reporting the information to 366 SFS. These checks/notifications are annotated on the AF Form 53, *Security Forces Blotter*.

1.2.1.2. **(Added)** The DFC will designate, in writing, individuals authorized to collect information pertaining to off-base traffic offenses.

1.2.1.3. **(Added)** 366 SFS personnel and 366 FW/A7SR engaged in law enforcement and adjudication activities will follow the provisions identified in AFI 31-115, *Security Forces Systems and Administration,* for reporting all criminal and traffic violations, and utilize AFJIS (Air Force Justice Information System) to support reporting requirements and procedures.

1.2.1.4. **(Added)** A7SRwill input all vehicle accidents, DD Form 1408s, *Armed Forces Traffic Ticket*, DD Form 1805s, *United States District Court Violation Notices* (USDCVNs) (collected for statistical analysis) in AFJIS and ensures traffic citations are correctly reportable under Defense Incident-Based Reporting System (DIBRS)/National Incident-Based Reporting System (NIBRS). A7SR creates AFJIS Incident Reports for all off-base DIBRS/NIBRS criminal incidents (extracted from Security Forces (SF) Blotters) into AFJIS. This includes requesting and tracking off-base Law Enforcement reports.

1.2.1.5. **(Added)** SFS personnel are responsible for the initial input of reportable DIBRS/NIBRS "on base criminal incidents" into AFJIS.

1.2.1.6. **(Added)** Law Enforcement personnel will review DoD 7730.47-M, *Manual for Defense Incident-Based Reports System* to verify if an incident is DIBRS/NIBRS reportable or is listed on the "Offense Look Up Table" in the AFJIS Help Center. If an incident is identified as a reportable incident a AFJIS Incident Report will be accomplished and forwarded to the A7SR.

1.2.2. **(Added)** ***The 366th Fighter Wing Commander (366 FW/CC).*** The 366 FW/CC establishes and manages the installation traffic supervision program. The 366 FW/CC has the authority to regulate the movement of traffic and personnel on MHAFB to ensure safe pedestrian and vehicle traffic. 366 FW/CC has delegated this authority to the Deputy Commander for Support (DCOM-S), who has the authority to act upon all issues and concerns regarding the installation vehicle traffic supervision program and is authorized to modify policies, procedures, and agreements as required.

1.2.2.1. **(Added)** The 366 FW/CC or designee cooperates with support programs of the state and regional highway traffic safety organizations and ensures traffic supervision is properly integrated into installation traffic safety program.

1.2.2.2. **(Added)** The 366 FW/CC or designee coordinates regional traffic supervision activities with other major military commanders in assigned geographic areas of responsibility, actively participates in conferences that apply to military traffic supervision.

1.2.2.3. **(Added)** MHAFB will honor/monitor agreements between other installation commanders and state licensing authorities for reciprocal reporting of suspension and revocation of driving privileges. Refer to Reciprocal Procedures and Reciprocal State-Military Action procedures.

1.2.2.4. **(Added)** The 366 FW/CC has established a Community Support Coordinator (366 FW/CVB) to oversee alcohol related prevention programs through the Integrated Delivery Systems (IDS), which consists of all base helping agencies, and coordinate with state efforts to reduce DUI incidents.

1.2.3. **(Added)** ***The 366th Fighter Wing Safety Office (366 FW/SE).*** 366 FW/SE is located at 366 Gunfighter Avenue, Building 512. 366 FW/SE develops traffic accident prevention initiatives in support of the installation traffic safety program. They also assist 366 SFS and other agencies with accident and incident investigations.

1.2.4. **(Added)** ***The 366th Civil Engineer Squadron (366 CES).*** 366 CES is located at Building #1300. 366 CES/CC has the responsibility of appointing the Installation Traffic Engineer to the Installation Traffic Safety Coordination Group (TSCG).

1.2.4.1. **(Added)** As the Installation Civil Engineer, the 366 CES/CC has the responsibility of plans, design, construction, and maintenance of streets, roadways, and abutting lands. The 366 CES/CC also has the responsibility of selecting, determining appropriate design, procurement, construction, installation, and maintenance of permanent traffic and parking control devices in coordination with the DFC and the 366 FW/SE. The 366 CES/CC must ensure all traffic signs, signals, and pavement markings conform to the standards in the current *Manual on Uniform Traffic Control Devices for Streets and Highways (MUTCD),* as well as conforming to the National Highway Safety Program Standards (NHSPS) and SDDCTEA Pamphlet 55-17 Better

Military Traffic Engineering (Surface Deployment and Distribution Command Transportation Engineering Agency).

1.2.4.2. **(Added)** The Installation Traffic Engineer (366 CES/CEN) has the responsibility of conducting traffic-engineering studies. They are also tasked with applying traffic engineering measures and control devices to reduce the number and severity of traffic accidents/incidents.

1.2.4.3. **(Added)** The 366 CES Operations Flight (CEO) is responsible for the fabrication, installation, and maintenance of all traffic signs and control devices in accordance with the MUTC.

1.2.5. **(Added)** ***The Installation Traffic Safety Coordination Group (TSCG).*** The TSCG reviews all matters pertaining to traffic control on MHAFB. At a minimum, the TSCG will meet annually to review the installation traffic safety program. All suggestions or requests for changes will be submitted on an AF Form 332, *Base Civil Engineering Work Request*, to 366 CES/CEO. 366 CES/CEO will, in turn, forward all suggestions/requests to 366 FW/A7S who will evaluate each request or suggestion and refer it to the TSCG or appropriate base agency for action. As a minimum, all AF Forms 332 and similar work requests or suggestions, for road construction and/or deviation of the installation traffic flow, must be coordinated by the 366 CES/CEN, 366 FW/SE, and 366 FW/A7S. The TSCG is comprised of the following members or their designated representatives:

1.2.5.1. **(Added)** 366th Fighter Wing, Deputy Commander Support (DCOM-S)

1.2.5.2. **(Added)** 366th Security Forces Squadron Commander (366 SFS/CC/DFC).

1.2.5.3. **(Added)** 366th Civil Engineer Squadron Commander (366 CES/CC).

1.2.5.4. **(Added)** 366th Civil Engineer Squadron Traffic Engineer (366 CES/CEN).

1.2.5.5. **(Added)** 366th Fighter Wing Safety Office (366 FW/SE).

1.2.5.6. **(Added)** 366th Fighter Wing Public Affairs (366 FW/PA).

1.2.6. **(Added)** ***Unit Commanders and First Sergeants.*** Unit commanders and First Sergeants are responsible for ensuring individuals assigned to their unit/organization understand the applicable traffic codes/laws prior to operating a motor vehicle on MHAFB.

1.2.6.1. **(Added)** Unit commanders are responsible for ensuring the AF Form 3545, *Incident Report* (Section VIII), is completed and endorsed IAW this instruction, and returned to 366 FW/A7SR within 60 calendar days of issuance. First Sergeants may handle administrative actions;

1.2.6.2. **(Added)** Unit Commanders ensure personnel participate in alcohol safety programs, using research, education and social norms, to educate military and civilian personnel of hazards associated with DUIs, and address problems of alcohol abuse. Examples: Airmen Against Drunk Driving (AADD), weekly safety briefings, Commander's Calls, First Term Airman's Council (FTAC) Right Start briefing.

1.2.6.3. **(Added)** Unit Commanders will refer personnel identified with alcohol and or drug abuse problems to Mountain Home AFB Alcohol and Drug Abuse Prevention Treatment (ADAPT) program.

1.3. **Delegation of Authority.** The 366 FW/CC has delegated this authority to the 366 FW/ DCOM-S and has the authority to act upon all issues and concerns regarding the installation vehicle traffic supervision program.

2.1.1. **(Added)** Driving a Government Motor Vehicle (GMV) or a POV on MHAFB is a privilege granted by the 366 FW/CC, through the DCOM-S. Vehicle operators will comply with the laws and instructions governing motor vehicle operation requirements on the installation, as well as in the state of Idaho. Consequently, everyone operating a motor vehicle on MHAFB must produce, upon request from SF personnel, the following:

2.1.1.1. **(Added)** A certificate of State registration as required by the State in which the vehicle is registered. The vehicle operator is responsible for ensuring all registration identification is displayed as required by the State in which the vehicle is registered (e.g., two plates, vehicle inspection stickers, etc.). If vehicle registration is not provided the vehicle cannot be operated and must be immediately parked in the nearest legal/authorized parking area.

2.1.1.2. **(Added)** A valid (not expired) state driver's license and/or AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card* or OF 346, *US Government Motor Vehicle Operator's Identification Card*, and not be under suspension or revocation in any state or other DoD installation. **Note:** An International Driver's License issued within the United States is not considered a valid stateside driver's license for resident personnel. An International Driver's License is considered a valid license for non-resident personnel. If a valid state driver's license and/or AF Form 2293 is not provided the individual will not be permitted to operate the vehicle from that point. After verification of an alternate operator's valid state driver's license and/or AF Form 2293, the SF personnel may allow another operator to drive the vehicle.

2.1.1.3. **(Added)** Common Access Card (CAC), DD Form 1173, *Uniformed Services Identification and Privilege Card*, DD Form 2750, *DoD Civilian Identification Card*, or other valid local/federal identification media (e.g., Air Force Office of Special Investigations (AFOSI), Federal Bureau of Investigation (FBI), US Customs identification).

2.1.1.4. **(Added)** Proof of current insurance. Proof of insurance consists of an insurance card, or other document issued by the insurance company, that has a policy effective date and an expiration date. As a minimum personnel will have liability coverage, the Idaho state minimum insurance requirement is $25,000/$50,000 for personal injury and $15,000 for property damage. Proof of current insurance may be produced in either paper or electronic format. **Note**: If personnel cannot provide proof of valid insurance they cannot operate that POV on the installation.

2.1.2. **(Added)** All military personnel must accomplish DoD-specified motorcycle training before they operate motorcycles on MHAFB.

2.1.2.1. **(Added)** Operators must have a Motorcycle Safety Foundation (MSF) completion certificate. An MSF completion certificate will be provided to the operator after the completion of the following motorcycle training courses required by AFI 91-207, *The US Air Force Traffic Safety Program*: motorcycle riding course, riding street skills course IV A, and experienced rider course IV B.

2.1.2.2. **(Added)** All persons must have a current valid state motorcycle license, with a motorcycle endorsement on their state vehicle operator's license. Motorcycle operators must comply with the requirements of AFI 91-207.

2.2.3. **(Added)** The 366 FW/CC determines when, where and how to implement random checks of vehicles. The following principles govern the stopping of motor vehicles.

2.2.3.1. **(Added)** The stopping, inspecting and impounding of vehicles is pursuant to DOD 5200.08-R, *Physical Security Program,* AFI 31-101, AFMAN 31-113, *Installation Perimeter Access Control*, the 366 FW Integrated Defense Plan (IDP), and any local command policies and/or directives established by the 366 FW/CC detailing stop, inspection, search, and impoundment of motor vehicles on MHAFB installation entry gates and restricted areas.

2.2.3.2. **(Added)** Random Installation Entry/Exit Vehicle Checks (RIEVCs) are conducted randomly on vehicles at entry/exit points to the installation IAW AFI 31-101 and the IDP. The 366 FW/CC or designated representative will, through the 366 FW/JA (Staff Judge Advocate), establish a monthly schedule of RIEVCs. Each approved schedule will be distributed IAW with the IDP.

2.2.3.2.1. **(Added)** IAW with the IDP, vehicles are subject to search when entering certain controlled or restricted areas located on MHAFB.

2.2.3.2.2. **(Added)** Refusal by vehicle operators to submit to an examination of their vehicle during RIEVCs will result in denial of installation entry. The status of the individual (military, dependent or civilian) will determine action to be taken.

2.2.3.2.3. **(Added)** If an active duty military person (regardless of military branch of service) civilian employee, military dependent, or visitor refuses a check of his/her person and/or vehicle, the result will be denial of vehicle entry/exit onto/from the installation, possible vehicle impoundment at the owner's expense pursuant to AFI 31-218(I), revocation of installation driving privileges, and/or possible administrative actions.

2.3.1. **(Added)** Tests may be administered only if the following conditions are met:

2.3.1.1. **(Added)** The person was lawfully stopped while driving, operating, or in actual physical control of a motor vehicle on the installation.

2.3.2. **(Added)** Administrative revocation of driving privileges and other enforcement measures will be applied uniformly to offenders driving under the influence of alcohol or drugs. An evidentiary test for alcohol concentration shall be based upon a formula of grams of alcohol per 100 cubic centimeters of blood, per 210 liters of breath (utilizing the Lifeloc FC 20 Portable Breathalyzer, IAW AFI 31-218(I), Motor Vehicle Traffic Supervision and Idaho State Statutes) or 67 milliliters of urine. When a person is tested by the following means: 1. implied consent for breath; 2. consent for blood or urine (using AF IMT 1364); 3. valid written/verbal search authorization (using AF 1176 and coordination with JA) for blood or urine, the results of the test will be evaluated as follows:

2.3.2.1. **(Added)** If the individuals Blood Alcohol Content (BAC) or Breath Alcohol Content (BrAC) is less than 0.05 percent, presume the person is not under the influence of alcohol.

2.3.2.2. **(Added)** If the individuals BAC/BrAC is over 0.05 but less than 0.08 presume the person may be impaired. This standard may be considered with other competent evidence in determining whether the person was under the influence of alcohol.

2.3.2.3. **(Added)** Operating a commercial vehicle with a BAC/BrAC of 0.04 percent by volume or higher, the driver is considered driving under the influence.

2.3.2.4. **(Added)** Operating a motor vehicle with a BAC/BrAC of 0.02 percent by volume or higher by personnel under the age of 21, the driver is considered driving under the influence.

2.3.2.5. **(Added)** If the individuals BAC/BrAC is 0.08 or more, or if tests reflect the presence of illegal drugs, the person was driving while intoxicated.

2.3.3. **(Added)** Failure to submit to required breath tests, under the implied consent policy, will result in an automatic 1-year suspension of driving privileges based on the facts as determined by 366 FW/CC or designee.

2.4.1. **(Added)** Implied consent to impoundment is defined as any person granted the privilege to operate or register a motor vehicle on a military installation shall be deemed to have given his or her consent for the removal and temporary impoundment of the POV when it is parked illegally, or for unreasonable periods, as determined by the installation commander or applicable authority, interfering with military operations, creating a safety hazard, disabled by accident, left unattended in a restricted or controlled area, or abandoned. Such persons further agree to reimburse the United States for the cost of towing and storage should their motor vehicle be removed or impounded. The installation commander or designee will determine the existence of these conditions. The following incidents, circumstances and conditions may result in vehicle impoundment:

2.4.1.1. **(Added)** Refusal to complete a breath test for chemical analysis, driving drunk or impaired BAC/BrAC of 0.02 or greater for persons under the established age of 21 years or BAC/BrAC of 0.08 or greater for persons have attained 21 years.

2.4.1.2. **(Added)** Driving under false pretenses, illegally obtaining a license, or altered license.

2.4.1.3. **(Added)** Allowing an unlicensed person to operate a motor vehicle.

2.4.1.4. **(Added)** Commission of a serious offense with a motor vehicle.

2.4.1.5. **(Added)** Vehicle is suspected of being involved in a crime and/or may contain evidence.

2.4.1.6. **(Added)** Parked in a public place/area (e.g., Bowling Center, Youth Center, Army, Army and Air Force Exchange Service (AAFES), Defense Commissary (DeCA), etc.) for the sole purpose of sale, other than one's residence or the "For Sale" lot.

2.4.2. **(Added)** Implied consent to Blood Test, vehicle impoundment and MHAFB Traffic code will be briefed by SF personnel as part of the installation newcomer's briefing (First Term Airman briefing).

2.4.3. **(Added)** Notify drivers that certain violations or multiple violations may result in vehicle towing. Also, notify drivers that if towed, drivers will be provided with a prompt opportunity to obtain the release of their property.

2.4.4. **(Added)** Unit Commanders are responsible to brief new arrivals of the consequences of abandoned personal property and to ensure personal effects are cleared prior to personnel departing on Permanent Change of Station (PCS) orders.

2.4.5. **(Added)** Any person who operates a motor vehicle on the installation who is involved in a vehicle or criminal infraction shall be informed that the violation will be forwarded to Department of Motor Vehicles of the host State and or home of record.

2.4.6. **(Added)** MHAFB does not utilize the boot system.

2.5. **(Added) Suspension or Revocation of Driving Privileges.** The 366 FW/CC and/or designee has discretionary authority to suspend or revoke installation driving privileges for lawful reasons both related and unrelated to traffic violations and safe vehicle operation. Revocation of installation driving privileges is a severe administrative measure, IAW AFI 31-218(I), para. 2-4.a. (1). The 366 FW/CC has delegated authority to the DCOM-S or 366 FW/A6/7 Director (if DCOM-S is not reasonably available) to act upon all issues pertaining to the suspension or revocation of base driving privileges and/or restricted driving privileges and to conduct hearings regarding suspension and revocation of base driving privileges IAW AFI 31-218(I). When members driving privileges are suspended or revoked, they must return their AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card,* and a copy of their base driving Revocation/Suspension Letter to the 366th Logistics Readiness Squadron, Operators Records and Licensing section (366 LRS/LGRDDO), Building #1126.

2.5.1. **(Added)** Suspension is defined as the temporary withdrawal of driving privileges pending final determination by the 366 FW/CC or designee as to whether driving privileges will be revoked for a certain period of time. Driving privileges are usually suspended when other measures fail to improve a driver's performance. An individual's installation driving privileges will be reinstated upon completion of required remedial driving course, and/or substance abuse counseling, and proof of their current driver's license must be provided. *EXCEPTION:* Suspensions imposed based **solely** on nonmoving violations will be automatically reinstated the day following the last day of suspension. Individuals do not require the completion of Air Force Driver Improvement and Rehabilitation Course if the suspension is the result of no liability insurance or suspended driver's license. The individual must provide proof of correction to the violation to A7SR prior to reinstatement. Refer to **Table 2.1** for a list of offenses that may result in a suspension.

2.5.1.1. **(Added)** The 366 FW/CC or designee may suspend or revoke driving privileges for serious or non-moving violations or when lesser measures fail to improve a driver's performance. Non-moving violations include defective or unsafe vehicles, unauthorized repair, failure to register, unauthorized modification, prohibited parking, and any other non-moving violation of the Idaho traffic code. Refer to **Table 2.1** for non-moving offenses that may result in suspension of driving privileges on determination of the 366 FW/CC or designee.

2.5.1.2. **(Added)** IAW Idaho statutes, persons under the age of 21, with a BAC or BrAC level standard of .02 or higher is reason for automatic suspension.

2.5.1.4. **(Added)** The 366 FW/CC or designee will immediately suspend installation GMV or POV driving privileges pending resolution of an intoxicated driving incident, which involves active duty military personnel, their family members, retired members of the military service, and DoD civilian personnel regardless of the geographic location of an intoxicated driving incident. Suspension is authorized for non-DoD affiliated civilians only with respect to incidents occurring on the installation.

2.5.1.4.1. **(Added)** After a review of available evidence as specified in AFI 31-218(I), paragraph **2-6**, the 366 FW/CC has directed suspension of driver's privileges pending resolution of the intoxicated driving incident under the following circumstances:

2.5.1.4.1.1. **(Added)** Refusal to take or complete a lawfully requested breath test to BAC for alcohol or the refusal to take or complete a verbal/written search authorization for a chemical test of BrAC or Urine for alcohol or other drugs.

2.5.1.4.1.2. **(Added)** Operating a motor vehicle with BAC/BrAC of 0.08 percent by volume or higher.

2.5.1.4.1.3. **(Added)** Operating a motor vehicle with BAC/BrAC of 0.02 or higher by personnel under the age of 21.

2.5.1.4.1.4. **(Added)** Operating a commercial vehicle with BAC/BrAC of 0.04 or higher 21.

2.5.1.4.1.5. **(Added)** On an arrest report or other official documentation of the circumstances of an apprehension for intoxicated driving.

2.5.1.4.2. **(Added)** Preliminary Suspension. Preliminary suspension applies to all military personnel, family members, civilian employees, and others who are apprehended or charged with an intoxicated driving incident or refusal to submit to or complete a breath test for alcohol or drug content and/or refusal to complete/take blood for a verbal/ written search authorization, regardless of the geographical location of the incident. All personnel issued a Notice of Preliminary Suspension of Installation Driving Privileges letter will be briefed of their due process rights.

2.5.1.4.2.1. **(Added)** On-duty SF personnel will issue a Pre-signed Notice of Preliminary Suspension of Installation Driving Privileges letter to offenders charged, prior to releasing the offender. On-duty SF personnel will contact the on-call 366 FW/JA, advise them of the facts of the incident, and request authority to issue the pre-signed letter.

2.5.1.4.2.1.1. **(Added)** IAW AFI 31-218(I), para 2-6.c (4), if the on-call 366 FW/JA is not reasonably available, the on-duty Flight Chief (acting as the installation law enforcement officer) will conduct the review and approve or disapprove issuance of the letter. In these cases the SF blotter will reflect the review was conducted by the on duty Flight Chief based on negative contact with on-call JA.

2.5.1.4.2.1.2. **(Added)** For active duty military personnel, the pre-signed letter will be issued to the offender in the presence of their First Sergeant or supervisor.

2.5.1.4.2.1.3. **(Added)** For non-military personnel, the pre-signed letter will be issued directly to the offender.

2.5.1.4.2.2. **(Added)** If charged with a DUI offense by civil law enforcement, offenders will report to A7SR the next duty day. A7SR will contact the on-call 366 FW/JA, advise them of the facts of the incident, and request authority to issue the pre-signed letter.

2.5.1.4.2.2.1. **(Added)** For active duty military personnel, A7SR will inform the offender's commander or First Sergeant and request the offender and their supervisor to report to the A7SR to be issued the pre-signed letter.

2.5.1.4.2.2.2. **(Added)** For non-military personnel, the pre-signed letter will be issued directly to the offender.

2.5.1.4.2.3. **(Added)** For DoD employees the supervisor (not the unit commander) will be notified of preliminary suspension, but does not have to be present when the pre-signed letter is issued. A7SR will coordinate with Civilian Personnel Office (CPO) to determine who the

supervisor is and send a copy of the documents reflecting suspension/revocation. If the supervisor is the unit commander, the commander will be notified as the offender's supervisor.

2.5.1.4.2.4. **(Added)** For military family members and other dependents of active duty personnel, the sponsoring unit will be notified, but no unit personnel have to be present when the pre-signed letter is issued.

2.5.2.1. **(Added)** Revocation is defined as the final determination by the 366 FW/CC or designee to permanently withdraw driving privileges of an individual for a certain period of time. The 366 FW/CC or designee may revoke driving privileges for moving offenses identified in **Table 2.1** for the specified time when a serious incident involving a motor vehicle occurs and determines immediate revocation of driving privileges is required to preserve public safety or the good order and discipline of military personnel. Revocation of driving privileges apply at all military installations and remain in effect upon reassignment.

2.5.2.1.1. **(Added)** Revocation of driving privileges will supersede any pervious grant of partial or restricted driving privileges.

2.5.2.1.2. **(Added)** Upon receipt of written notice of revocation of driving privileges, the driver may petition for restoration of all or limited/restricted driving privileges to A7SR, 366 Gunfighter Avenue, Building #512, Room 2002B, Mountain Home AFB, ID 83648.

2.5.2.1.3. **(Added)** For intoxicated driving incidents, after A7SR receives all relevant documentation pertaining to the incident (e.g., police report, statements, BAC or blood results), a final revocation package will be submitted to the 366 FW/CC or designee for review/determination.

2.5.2.1.3.1. **(Added)** If the offender's driving privileges are revoked, A7SR will notify the offender to respond to the A7SR to be issued the final revocation letter.

2.5.2.1.3.1.1. **(Added)** For active duty military personnel, A7SR will inform the offender's commander or First Sergeant and request the offender and their supervisor to report to the A7SR to be issued the final revocation letter.

2.5.2.1.3.1.2. **(Added)** For non-military personnel, A7SR will send the letter by certified mail to the violators listed address IAW AFI 31-115.

2.5.2.1.3.1.3. **(Added)** If the individual is unable to respond to A7SR (e.g., departed MHAFB), the final revocation letter will be sent to the offender via certified mail with a return signature receipt.

2.5.2.1.3.1.4. **(Added)** When temporary suspensions (e.g., Preliminary Suspension) are followed by revocations, the period of revocation is computed beginning from the date the original suspension was imposed, exclusive of any period during which full driving privileges may have been restored pending resolution of charges.

2.5.2.1.3.1.5. **(Added)** For DoD employees and military family members and other dependents of active duty personnel, notifications of final revocation will be completed IAW para 2.5.1.4.2 of this supplement.

2.5.2.1.3.2. **(Added)** If the offender's driving privileges are NOT revoked, A7SR will notify the offender by most efficient means available that the Preliminary Suspension was lifted.

2.5.2.1.3.3. **(Added)** A7SR will ensure AFJIS and Defense Biometric Identification System (DBIDS) is updated to reflect current vehicle operator status.

2.5.2.1.4. **(Added)** For offenses other than intoxicated driving, (e.g. texting while driving), after A7SR receives all relevant documentation pertaining to the incident (e.g., police report, statements, etc.), a suspension/revocation package will be submitted to the 366 FW/CC or designee to review.

2.5.2.1.4.1. **(Added)** If the offender's driving privileges are suspended/revoked, A7SR will instruct the offender to report to Bldg. 512 Room 2002B to be issued the suspension/revocation letter.

2.5.2.1.4.1.1. **(Added)** For active duty military personnel, A7SR will inform the offender's commander or First Sergeant and request the offender and their supervisor to report to the A7SR to be issued the suspension/revocation letter.

2.5.2.1.4.1.2. **(Added)** For non-military personnel, A7SR will send letter by certified mail to the violators listed address IAW AFI 31-115.

2.5.2.1.4.1.3. **(Added)** If the individual is unable to report to A7SR (e.g., departed MHAFB), the letter will be sent to the offender via certified mail with a return signature receipt.

2.5.2.1.4.1.4. **(Added)** For DoD employees and military family members and other dependents of active duty personnel, notifications of revocation will be completed IAW para 2.5.1.4.2 of this supplement.

2.5.2.1.4.1.5. **(Added)** Revocation will not become effective until the 366 FW/CC or designee reviews the incident report, makes a final determination and the offender signs the revocation letter.

2.5.2.1.4.1.6. **(Added)** The revocation letter will be presented to the offender, and at that time they will be offered an administrative hearing.

2.5.2.1.4.1.7. **(Added)** Suspension/revocation of driving privileges will not become effective until the offender is notified (or reasonable attempts are made) and offered an administrative hearing. Suspension/revocation will take place 14 calendar days after written notice is received unless the affected person makes an application for a hearing within this period. Such application will stay the pending suspension/revocation for a period of 14 calendar days.

2.5.2.1.4.1.8. **(Added)** If the individual requests an administrative hearing, A7SR will route the request, through the A6/7 to the 366 FW/CC or designee, and notify the individual of the date of the administrative hearing. Such application will stay the pending suspension or revocation for a period of 14 calendar days. Preliminary suspensions for DUI will remain in-place pending final determination of the hearing.

2.5.2.1.4.1.9. **(Added)** If, due to action by the Government, a hearing is not held within 14 calendar days, the suspension will not take place until the offender is granted a hearing and is notified of the action imposed by the Installation Commander or designee. Preliminary suspensions for DUI will remain in-place until the final determination is made. If the offender requests the hearing be postponed to a date beyond the 14-day period, the revocation will become effective immediately upon receipt of notice that the request for continuance has been granted, and remain in force pending a hearing at a scheduled hearing date.

2.5.2.1.4.1.10. **(Added)** If, as a result of the hearing, the decision is made to revoke driving privileges; revocation becomes effective upon the driver's receipt of the written notification of such action. In the event written notification cannot be verified through either a return receipt for mail or delivery through command channels the hearing authority will determine the effective date on a case–by–case basis.

2.5.2.1.5. **(Added)** All written suspension/revocations notices shall contain the following information:

2.5.2.1.5.1. **(Added)** Suspensions may be converted into a revocation if the 366 FW/CC or designee finds the facts support the charged violation.

2.5.2.1.5.2. **(Added)** The right to request restoration of driving privileges pending investigation or resolution of the incident. Such request shall be directed to the 366 FW/CC or designee through A7SR, 366 Gunfighter Avenue, Building #512, Room 2002B, Mountain Home AFB, ID 83648.

2.5.2.1.5.3. **(Added)** The right of military personnel to present evidence and witnesses and be represented by a civilian counsel (at their own expense) or assigned military counsel.

2.5.2.1.5.4. **(Added)** DoD bargaining unit civilian employees may choose to have a union representative as their personal representative present at the administrative hearings IAW applicable laws and instructions.

2.5.2.1.5.5. **(Added)** The amount of time the individual has to respond and request the administrative hearing before preliminary suspension becomes a revocation.

2.5.2.1.5.6. **(Added)** Direction to sign the acknowledgement of receipt and to return the signed letter to the office indicated in the letter.

2.5.2.1.6. **(Added)** Hearings for intoxicated driving will cover only pertinent issues of whether:

2.5.2.1.6.1. **(Added)** The law enforcement official had reasonable grounds to believe the person was driving or was in physical control of a motor vehicle while under the influence of alcohol or other drugs.

2.5.2.1.6.2. **(Added)** The person was lawfully cited or apprehended for an intoxicated driving offense.

2.5.2.1.6.3. **(Added)** The person was asked to submit to a test for alcohol or other drug content of breath or urine, and was informed of the consequences for refusing to take or complete such a test;

2.5.2.1.6.4. **(Added)** The person refused to submit to the test for alcohol, (breath, blood, or urine); failed to complete test; submitted to the test and results exceeded the amount of allowed blood alcohol content; results indicate the presence of other drugs for an on-installation apprehension or in violation of state laws for an off-installation apprehension;

2.5.2.1.6.5. **(Added)** Testing methods used were valid and reliable, and results accurately recorded and evaluated and;

2.5.2.1.6.6. **(Added)** Whether, considering all available evidence, it is more likely than not the suspect committed the offense. A7SR will provide the 366 FW/CC or designee the arrest report, court documents, final disposition (if available), and any information provided by the individual

for consideration. If the 366 FW/CC or designee determines that by preponderance of evidence the individual was driving under the influence, the revocation will be at least one year, but not exceed two years from the date of the original preliminary suspension.

2.5.2.1.7. **(Added)** Military personnel who have had their installation driving privileges suspended/revoked must attend the Air Force Driver Improvement and Rehabilitation Course. Commanders or First Sergeants will request the course through 366 FW/SE. 366 FW/SE will confirm a course date and time in reply to the respective Commander or First Sergeant. This course is mandatory before the reinstatement of installation driving privileges. Court-approved local community driver improvement programs may be used to fulfill the requirement.

2.5.2.1.7.1. **(Added)** Personnel who are involved in DUI incidents are not required to complete the Air Force Driver Improvement and Rehabilitation Course but are required to complete the ADAPT program.

2.5.2.1.7.2. **(Added)** Personnel involved in DUI incidents will provide proof of attendance to an alcohol/drug program or alcohol/drug rehabilitation/counseling certification to A7SR no later than three duty days prior to the reinstatement of driving privileges.

2.5.2.1.8. **(Added)** If the suspension is the result of nonmoving violations individuals do not require the completion of Air Force Driver Improvement and Rehabilitation Course; the individual must provide proof of insurance/driver license to A7SR prior to reinstatement.

2.5.2.1.9. **(Added)** All military and DoD civilian personnel who have had their installation driving privileges suspended/revoked for reckless driving, point accumulation while driving a GMV, or have been determined to be at fault in a traffic mishap while operating a GMV must attend the Air Force Driver Improvement and Rehabilitation Course. Refer to AFI 91-207 for additional information.

2.5.2.2.1. **(Added)** Personnel who transferred from other Air Force installations whose driving privileges were suspended or revoked, will remain under suspension or revocation for at least the original specified period. Revocation or suspension should also continue for the specified period for personnel in temporary duty (TDY) status to another installation. Individuals who have had limited driving privileges granted by the installation commander must have a copy of the granting memorandum immediately available when operating a motor vehicle and present it upon request.

2.5.2.2.2. **(Added)** A7SR will ensure all driving suspensions or revocations are recorded in AFJIS and DBIDS.

2.5.2.3. **(Added)** The 366 FW/CC has determined that multiple suspensions imposed will run consecutively.

2.5.2.4. **(Added)** For moving violations, DCOM-S (or A6/7) will issue the minimum suspension/ revocation provided for in Table 2.1 below. DCOM-S (or A6/7) may issue a longer suspension/revocation, but only if the suspension/revocation does not exceed any mandatory maximum time listed in AFI 31-218(I), and only if one or more of the following aggravating factors applies:

2.5.2.4.1. **(Added)** The driver has demonstrated a pattern of neglect or disregard for driving regulations or safety.

2.5.2.4.2. **(Added)** The driver's supervisor has taken efforts to correct the driver's behavior, but the efforts have been unsuccessful.

2.5.2.4.3. **(Added)** The driver's commander (or the drivers sponsor's commander or the commander of the squadron in which a non-military employee works) states that he or she believes the driver is a threat to installation personnel or property.

2.5.2.4.5. **(Added)** After considering the facts of the situation, DCOM-S (or A6/7) determines that the driver represents a unique threat to installation personnel or property or that the driver's actions were uniquely egregious e.g., Blood Alcohol Content, (BAC) or Breath Alcohol Concentration (BrAC) over .16 (2 times legal limit.).

Table 2.1. (Added) Suspension/Revocation of Driving Privileges (Moving Violations).

Violation	Assessment
Driving while driver's license or installation driving privileges are under suspension or revocation ***(IAW AFI 31-218(I), Table 5-1)***	2–year revocation is mandatory on determination of facts by installation commander
Refusal to submit to or failure to complete breath tests (implied consent) or refusal to complete a verbal/written search authorization for blood/urine (AF 1176) ***(IAW AFI 31-218(I), Table 5-1)***	A 1–year revocation is mandatory on determination of facts by installation commander (See Note 2)
Manslaughter (or negligent homicide by vehicle) resulting from the operation of a motor vehicle ***(IAW AFI 31-218(I), Table 5-1)***	A 1–year revocation is mandatory on conviction
Driving or being in actual physical control of a motor vehicle while under the influence of intoxicating liquor (0.08% or greater on DOD installations; violation of civil law off base) ***(IAW AFI 31-218(I), Table 5-1)***	A 1–year revocation is mandatory on conviction
Driving a motor vehicle while under the influence of any narcotic, or while under the influence of any other drug (including alcohol) to the degree rendered incapable of safe vehicle operation ***(IAW AFI 31-218(I), Table 5-1)***	A 1–year revocation is mandatory on conviction
Use of a motor vehicle in the commission of a felony ***(IAW AFI 31-218(I), Table 5-1)***	A 1–year revocation is mandatory on conviction
Fleeing the scene of an accident involving death or personal injury (hit and run) ***(IAW AFI 31-218(I), Table 5-1)***	A 1–year revocation is mandatory on conviction

Perjury or making a false statement or affidavit under oath to responsible officials relating to the ownership or operation of motor vehicles ***(IAW AFI 31-218(I), Table 5-1)***	A 1–year revocation is mandatory on conviction
Unauthorized use of a motor vehicle belonging to another, when the act does not amount to a felony ***(IAW AFI 31-218(I), Table 5-1)***	A 1–year revocation is mandatory on conviction
Mental or physical impairment (not including alcohol or other drug use) to the degree rendered incompetent to drive ***(IAW AFI 31-218(I), Table 5-1)***	Suspension for a period of 6 months or less (revocation for a period not to exceed 1 year is discretionary)
Commission of an offense in another State which, if committed on the installation, would be grounds for suspension or revocation ***(IAW AFI 31-218(I), Table 5-1)***	Suspension for a period of 6 months or less (revocation for a period not to exceed 1 year is discretionary)
Permitting an unlawful or fraudulent use of an official driver's license ***(IAW AFI 31-218(I), Table 5-1)***	Suspension for a period of 6 months or less (revocation for a period not to exceed 1 year is discretionary)
Conviction of fleeing, or attempting to elude, a police officer ***(IAW AFI 31-218(I), Table 5-1)***	Suspension for a period of 6 months or less (revocation for a period not to exceed 1 year is discretionary)
Conviction of racing on the highway ***(IAW AFI 31-218(I), Table 5-1)***	Suspension for a period of 6 months or less (revocation for a period not to exceed 1 year is discretionary)
Receiving a second 1–year suspension or revocation of driving privileges within 5 years ***(IAW AFI 31-218(I), Table 5-1)***	Loss of OF 346 and/or AF Form 2293 (GOV license)for minimum of 6 months is discretionary
Operating a motor vehicle with the Idaho standard of a BAC/BrAC of 0.02 percent by volume or higher if under 21 years old (ADDED)	A 1–year revocation is mandatory on conviction (based on standard for operating a motor vehicle under the influence of intoxicating liquor in AFI 31-218(I)) **NOTE:** Personnel under the age of 21 are considered to be operating a motor vehicle under the influence of intoxicating liquor with a BAC or BrAC of 0.02 percent by volume or higher IAW Idaho Statutes 18-8004)(1)(d)

Operating a commercial vehicle with the Idaho standard of a BAC/BrAC of 0.040 percent by volume or higher (ADDED)	A 1–year revocation is mandatory on conviction (based on standard for operating a motor vehicle under the influence of intoxicating liquor in AFI 31-218(I)) **NOTE:** Personnel operating a commercial vehicles are considered to be operating a motor vehicle under the influence of intoxicating liquor with a BAC or BrAC of 0.04 percent by volume or higher IAW Idaho Statutes 18- 8004(1)(b)
Driving without privileges (license expired/ suspended/revoked/never issued) (ADDED)	A 6 month suspension (following reinstatement/issue)
Second noncompliance with restraint or safety device requirements within 12 consecutive months (ADDED)	Suspension for a period not less than 30 days (minimum) but not greater than 6 months (maximum)
Second noncompliance with motorcycle driving privilege requirements within 12 consecutive months (ADDED)	Suspension for a period not less than 30 days (minimum) but not greater than 6 months (maximum)

Notes:
1. When imposing a suspension or revocation because of an off–installation offense, the effective date should be the same as the date of civil conviction, or the date that State driving privileges are suspended or revoked. This effective date can be retroactive. ***(Refer AFI 31-218(I), Table 5-1)***
2. No points are assessed for revocation or suspension actions. Except for implied consent violations and/or failure to complete verbal/written search authorizations, revocations must be based on a conviction by a civilian court or courts–martial, non- judicial punishment under Uniform Code of Military Justice (UCMJ), Art.15, or a separate hearing as addressed in this regulation. If revocation for implied consent is combined with another revocation, such as one year for intoxicated driving, revocations run consecutively (total of twenty-four months). The installation commander's policy is applied systematically and not on a case–by–case basis. ***(Refer AFI 31-218(I), Table 5-1)***
3. For these violations, drivers will be given a 96 hour Fix-It ticket to correct the violation. If a driver submits proof they corrected the violation within the 96 hours the Fix-It ticket will be voided and no suspension or revocation will be issued. (Added)

2.5.2.5. **(Added)** For non-moving violations, DCOM-S (or A6/7) will issue the minimum suspension/revocation provided for in Table 2.2 below. DCOM-S (or A6/7) may issue a longer suspension/revocation, but only if the suspension/revocation does not exceed any mandatory maximum time listed in AFI 31-218(I), and only if one or more of the aggravating factors listed paragraph 2.5.2.4 is/are met.

Table 2.2. (Added) Suspension/Revocation of Driving Privileges (Non-Moving Violations).

Violation	Assessment
Refusal to submit to a Random Installation Entry/Exit Checks. (Added)	Suspension for a period not less than 6 months (minimum) but not greater than 1 year (maximum)

2.5.3. **(Added)** Reciprocal Procedures. The 366 FW/CC or designee will honor revocations issued by other installation commanders regardless of service component affiliation. This includes all government employees and contractors who are reassigned to the installation. Revocations remain in effect after reassignment unless the issuing authority terminates the revocation before reassignment. Anyone with suspended or revoked privileges may petition the 366 FW/CC or designee for partial or limited driving privileges. Requests for limited/restricted driving privileges must be endorsed by the active duty member's commander. Dependents must have the request endorsed by their sponsor's commander, if applicable.

2.5.4. **(Added)** The parking lot at Building #6400/Visitor Control Center (VCC) is the authorized parking area for personnel whose driving privileges have been suspended or revoked. Vehicles parked in this lot must still meet all state registration and insurance requirements, will be parked as not to interfere with VCC operations/customers, and will be parked in a marked parking space in the back row of the parking lot (adjacent to the metal fence).

2.6.1. **(Added)** After coordination with the 366 FW/JA, unit commanders will direct drug and/or alcohol testing within 24 hours of suspected alcohol related motor vehicle/traffic incidents or misconduct, episodes of aberrant or bizarre behavior or where there is reasonable suspicion of drug use and the member refuses to provide consent for testing. Commanders are also encouraged to ensure BAT are taken as soon after the incident as possible to determine the level and intensity of alcohol involvement.

2.6.2. **(Added)** For military members described in **2.6**, the MHAFB ADAPT program or Remedial Driver's Program must be completed prior to reinstatement of either full or limited driving privileges. The individual is required to provide verification of completion of program(s). If the ADAPT program or Remedial Driver's Program are not completed prior to the planned reinstatement date, the suspension or revocation period will be extended until such time as the programs are completed.

2.6.3. **(Added)** A7SR will forward a copy of all reports on military personnel apprehended for intoxicated driving to the 366th Medical Operations Squadron, Alcohol and Drug Abuse Prevention and Treatment (366 MDOS/SGOWA) (ADAPT) program.

2.6.4. **(Added)** SF personnel will document all driving while intoxicated offenses using AF Form 3545, to ensure accurate reporting under DIBRS.

2.7. **(Added) Restoration of Driving Privileges upon Acquittal of Intoxicated Driving:** (Request for restoration of driving privileges will be considered as outlined in AFI 31- 218(I)).

2.7.1. **(Added)** The suspension of driving privileges for military and civilian personnel shall be restored if a final disposition indicates a finding of not guilty, charges are dismissed or reduced to an offense not amounting to intoxicated driving, or where an equivalent determination is made in a non-judicial proceeding.

2.7.2. **(Added)** The following are exceptions to 2.7.1. in which suspensions will continue to be enforced:

2.7.2.1. **(Added)** The preliminary suspension was based on refusal to take a chemical test.

2.7.2.2. **(Added)** The preliminary suspension resulted from a valid BAC/BrAC test (unless disposition of the charges was based on invalidity of the BAC/BrAC test). In the case of a valid BAC/BrAC test, the suspension will continue. In such instances, the individual will be notified in writing that the suspension will continue and of the opportunity to request a hearing within 14 calendar days.

2.7.2.3. **(Added)** At the hearing, the arrest report, the commander's report of official disposition, information presented by the individual, and such other information as the hearing officer may deem appropriate will be considered.

2.7.2.4. **(Added)** If the hearing officer determines by preponderance of evidence the individual was engaged in intoxicated driving.

2.7.2.5. **(Added)** The person was driving or in physical control of a motor vehicle while under a preliminary suspension or revocation.

2.7.2.6. **(Added)** An administrative determination has been made by the State or host nation licensing authority to suspend or revoke driving privileges.

2.7.2.7. **(Added)** The individual has failed to complete a formally directed substance abuse or driver's training program.

2.8. **(Added) Restricted or Limited Driving Privileges or Probation:**

2.8.1. **(Added)** Unless prohibited by higher authority, or other publication, the 366 FW/CC or designee may authorize limited/restricted driving privileges to those whose authority to drive on military installations was suspended or revoked by a military service authority. The individual's driving credentials (state, international, etc.) must still be valid. Requests for restricted or limited on base driving privileges will be coordinated with .A7SR

2.8.2. **(Added)** The burden of proof for reinstatement of driving privileges lies with the person applying for restricted or limited driving privileges. Reinstatement is not available for BAC or BrAC test refusals.

2.8.3. **(Added)** Granting restricted or limited driving privileges is on a case-by–case basis provided the person's state driver's license or right to operate motor vehicles remains valid to accommodate any of the following reasons: mission requirements; unusual personal or family hardships; delays exceeding 90 days, not attributed to the person concerned, in the formal disposition of an apprehension or charges that are the basis for any type of suspension or revocation.

2.8.4. **(Added)** DoD employees and contractors, who can demonstrate that suspension or revocation of installation driving privileges would constructively remove them from employment, may be given a limiting suspension/revocation limiting driving on the installation or activity to the most direct route to and from their respective work sites (see 5 USC 2302(b)(10)). This is not to be construed as limiting the commander from suspension or revocation of on-duty driving privileges or seizure of AF Form 2293, even if this action would constructively remove a person from employment in those instances in which the person's duty requires driving from place to place on the installation.

2.8.5. **(Added)** Applicants requesting limited or restricted driving privileges will route their requests through the A7SR.

2.8.6. **(Added)** The request will contain, at a minimum, a memorandum from the requestor addressed to the requestor's Commander and A7SR in turn. At a minimum, the memorandum will contain the requestor's commander's approval or disapproval in the form of an endorsement, the reason the requestor's driving privileges were suspended or revoked, the reason and justification for the request, the date a state or installation approved alcohol or drug rehabilitation program was completed, and the following certification statement: *"I certify that my state driver's license is and remains valid and is not under suspension or revocation by a state or federal license issuing authority. Further, I understand that if limited or restricted driving privileges are granted, a violation of the limitations or restrictions will subject me to an additional period of driving privilege suspension or revocation."*

2.8.7. **(Added)** Once approved or disapproved by the 366 FW/CC or designee, A7SR will notify the requestor's First Sergeant and request the individual report to A7SR to acknowledge final determination. The original request package will be filed and maintained by A7SR.

2.9. **(Added) Extension of Suspensions and Revocations:**

2.9.1. **(Added)** The 366 FW/CC or designee will increase by two years the suspension or revocation period when someone is discovered driving in violation of their original suspension or revocation. The 366 FW/CC or designee or unit commanders may also take administrative or disciplinary action.

2.9.2. **(Added)** The 366 FW/CC or designee may extend the suspension or revocation of installation driving privileges until the offender completes an approved remedial driver training course, drug or alcohol program, or other program deemed necessary by the 366 FW/CC or designee or local authorities.

2.10. **(Added) Reciprocal State-Military Action:**

2.10.1. **(Added)** Statutory authority may exist within some states for reciprocal suspension and revocation of driving privileges. If so, the 366 FW/CC or designee will honor the reciprocal agreement with the state drivers licensing authorities. On receipt of written notice, the 366 FW/CC or designee will suspend or revoke driving privileges as if the violations or incidents occurred within the jurisdiction of MHAFB.

2.10.2. **(Added)** The 366 FW/CC or designee will use the following procedures if statutory authority does not provide for formal military reciprocity:

2.10.2.1. **(Added)** When such authority suspends or revokes a license, the 366 FW/CC or designee will automatically terminate the individual's installation GMV and POV driving privileges. Take only comparable military administrative actions (suspensions and/or revocation) for those off-base violations reported by local or state authorities.

2.10.2.2. **(Added)** A7SR will notify the licensing authority of the state where a license was issued and the state where the incident occurred when revoking a person's installation driving privileges (for a period of one year or more only) following final adjudication of an intoxicated driving offense or for refusal to submit to a BAC or BrAC test. Include in the notification, the basis for the revocation and the BAC or BrAC level.

2.10.2.3. **(Added)** A7SR will notify state licensing agency by phone/email/FAX. If the state agency request formal notification, A7SR will notify licensing agency by official certified mail.

2.11. **(Added) Reinstatement of Driving Privileges:**

2.11.1. **(Added)** The 366 FW/CC or designee is the approval authority for early reinstatement of driving privileges or for limited/restricted driving privileges. Applications for early reinstatement is sent through the individual's unit commander, A7SR, A6/7, and the 366 FW/JA prior to being sent to the 366 FW/CC or designee.

2.11.2. **(Added)** The 366 FW/CC or designee conducts all traffic review hearings. To request a hearing, individuals must submit a written request for hearing to A7SR within 14 days of receipt of the suspension/revocation letter. The DCOM-S determines when hearings will be held. If a hearing is not requested within five duty days, the suspension/revocation will automatically convert into a permanent suspension/revocation.

2.11.3. **(Added)** Anyone whose driving privileges have been suspended or revoked may submit a petition to the 366 FW/CC or designee to vacate the revocation and/or request limited/restricted driving privileges. Typed requests will be endorsed by the individual's commander. A7SR will provide the requester instructions to complete the request. Submit request through A7SR for coordination. A7SR will submit a package consisting of the request letter, suspension/revocation

letter, any evidence obtained (e.g., civil arrest report and/or AFJIS/AF Form 3545), and applicable repudiation references to the 366 FW/CC or designee, 366 FW/JA, and member's Commander for coordination of approval. After the 366 FW/CC or designee has made a final determination on the request, A7SR will notify the member through the squadron First Sergeant. Member is required to report to A7SR to sign acknowledgement of determination.

2.11.3.1. **(Added)** If the request is approved, the individual is given a copy of the letter reflecting the conditions of the approval by A7SR.

2.11.3.2. **(Added)** Individual will have the letter with them at all times while operating a motor vehicle on MHAFB, and will surrender these documents upon request to any competent authority. If the request is denied, the individual is given a copy of the letter and informed their suspension/revocation is still in effect.

3.1. **(Added) General.** The 366 FW/CC establishes and manages the installation traffic supervision program; is responsible for ensuring the controlled entry of all vehicles entering MHAFB and has the authority to regulate the movement of traffic and personnel on MHAFB to ensure safe pedestrian vehicle traffic.

3.1.1. **(Added)** The 366 FW/CC or designee may also deny the privilege of operating a motor vehicle on MHAFB to anyone deemed appropriate.

3.1.2. **(Added)** Nonmilitary and non-DoD tenant activities located on Mountain Home AFB will comply with the requirements of this instruction.

3.2. **(Added) Motorcycles, Motor Scooters and Mopeds.** Military personnel must accomplish DoD- specified motorcycle training before they operate motorcycles on MHAFB. Operators must have a MSF completion certificate. An MSF completion certificate will be provided after the operator completes the following motorcycle training required by AFI 91-207, the motorcycle riding course, riding street skills course IV A, experienced rider course IV B.

3.2.1. **(Added)** All persons must have a valid state license, with a motorcycle endorsement on their license to operate a motorcycle. Motorcycle operators must comply with the requirements of AFI 91-207.

3.2.2. **(Added)** Operators of mopeds (defined as a motorized vehicle with two wheels that doesn't exceed 50 cc engine sizes and does not travel over 30 mph) must possess a valid, current state driver’s license (need not be motorcycle endorsed). Vehicles with two wheels with an engine size over 50 cc must have valid, current state driver’s license with motorcycle endorsement.

3.2.3. **(Added)** ***Do not*** loan motorcycles, motor scooters, mopeds, or All-Terrain Vehicles (ATVs) to unqualified military personnel. The owner is responsible for ensuring operators possess required training certificates or safety course completion card. The owner will be cited for failure to ensure course completion by all operators.

3.2.4. **(Added)** It is forbidden for individuals operating or riding a motor-driven cycle to be attached to, or pulled by any type of motor vehicle, with the exception that such vehicle may be towed on an approved trailer.

3.3. **(Added)** MHAFB passes will be issued IAW the 366 FW Integrated Defense Plan (IDP) and Security Forces instructions.

3.4. **(Added) Handicapped Person Identification.** MHAFB honors local and state-issued handicap decals. Handicap parking is regulated under the Uniform Federal Accessibility Standards and applies to all Air Force installations.

3.5. **(Added) Rental Vehicles.** Rental vehicles will be treated as government vehicles when being used for official business. For base entry, if all is in order, the vehicle may proceed in the same manner as a marked government vehicle.

3.6. **(Added) Courtesy Searches.** Courtesy narcotic detector searches are available to newly registered/purchased used vehicles within five days of vehicle acquisition, depending on the availability of military working dog (MWD) teams. Individuals requesting the courtesy search will present proof of purchase (i.e., valid bill of sale) prior to search being conducted. Courtesy searches are conducted on an appointment basis only. Individuals requesting a courtesy search need to contact 366 SFS Military Working Dog Kennels (366 SFS/S3OK) at 828-3296 to schedule an appointment.

4.1. **(Added) The 366 FW/CC or** designee has established the following standards as the MHAFB Installation Traffic Code. The MHAFB Installation Traffic Code contains the base rules of the road, policies and procedures for towing, searching, impounding and inventory of vehicles. The installation traffic code, to the degree possible, will conform to the Idaho Code. The MHAFB Installation Traffic Code meets all local and legal requirements and National Committee on Uniform Traffic Laws and Ordinances, and DODI 6055.4, DoD traffic Safety Program.

4.1.1.1. **(Added)** Idaho Code requires the use of an approved Department of Transportation infant/child restraint device in POVs for children six years of age and younger and/or under the weight of 60 pounds. NHTSA recommends children eight years of age and/or up to 80 pounds in weight be in an approved DOT infant/child restraint device or booster seat and will be installed in accordance with the manufacturer's instructions.

4.1.1.1.1. **(Added)** Operators and passengers of all vehicles (excluding motor-driven cycles) operated on MHAFB must wear restraint systems. In addition, operators and passengers of GMVs who are either active duty or reserve component members on active duty must wear restraint systems when driving or riding off the installation as well.

4.1.1.1.2. **(Added)** Child restraint seats should only be used in the rear seat of passenger vehicles.

4.1.1.1.3. **(Added)** Newborns to one year, and less than 22 pounds must ride in the back seat of the vehicle in a rear facing safety seat. This is the safest position possible for two reasons: 1) an infant can be seriously injured or killed by an inflating airbag; and 2) the driver is less likely to be distracted while trying to care for the baby. The car seat should be firmly fastened in place and should not slide from side-to-side. Be sure to read the manufacturer's instructions before using the car seat. Keep the straps over the child's shoulders. Adjust the harness so you can only fit one finger underneath the straps at the child's chest. The chest clip should be even with the child's armpits.

4.1.1.1.4. **(Added)** Toddlers one year and 20-40 pounds can graduate to child safety seats that face forward. Like rear-facing seats, these should always be placed in the back seat. Make sure the straps of the car seat go over the child's shoulders. Straps should be snug enough so you can slip only one finger underneath the strap at the child's chest. Place the chest clip at armpit level.

4.1.1.1.5. **(Added)** Children four to eight years, and 40-80 pounds, and less than 4'9" may use a convertible toddler seat as long as they will fit. When they have outgrown the convertible toddler seat, use a booster seat that positions the lap/shoulder belt correctly. The lap belt should be across the child's hips, and the shoulder belt should not cross the face or front of the neck.

4.1.1.1.6. **(Added)** Children eight years and older, 70 pounds or more, or tall enough to sit with knees bent at the edge of the seat can use the adult lap/shoulder belts provided in the car. Ensure the seat belts fit properly. Never allow children to put the shoulder portion of the safety belt behind them or under the arm. Children should remain in the back seat of the vehicle until 10 years of age.

4.1.1.1.7. **(Added)** The only exception to putting infants in the back seat is if you can deactivate the passenger airbag.

4.1.1.1.8. **(Added)** Cars manufactured after model year of 1966 require a manufacture approved restraint system meeting federal traffic safety standards. Vehicles manufactured prior to 1966 do not require the use of restraint system if the vehicle is not equipped with same.

4.1.1.1.9. **(Added)** Operators using vehicles equipped with a supplemental restraint system (airbag) must still wear the manufacture's primary restraint system (seatbelts).

4.1.1.1.10. **(Added)** Passengers will not ride in the back of vehicles, unless vehicle is specifically designed to carry passengers in the back and is equipped with the proper seats and safety restraints. This includes station wagons, trucks, campers, and cargo vans. This does not include buses. Under no circumstances, will passengers be allowed to ride in fifth-wheel trailers, travel trailers, tent trailers (pop-up trailers) when towed and the vehicle is in motion. Exigent circumstances or contingency requirements exceed availability of such GMVs, commanders may deviate from this requirement. If personnel are authorized to ride in the back of these vehicles, they must be seated at all times and be within the bed or enclosed area of the vehicle (e.g., no sitting on the sides of pick-up beds and/or tailgates).

4.1.1.1.11. **(Added)** Pets traveling in the back of open vehicles (e.g., pick-up trucks) will be confined in an approved pet carrier or similar device, which will be securely attached to the vehicle.

4.1.1.1.12. **(Added)** Failure to wear safety restraints while on or off the installation could result in revocation of installation driving privileges from one month to one year, as determined by the 366 FW/CC or designee, on a case-by-case basis. Such actions may also result in a "Line of Duty" investigation to determine the cause(s) of an accident and/or injury.

4.1.1.2. **(Added)** 366 FW Safety personnel may stop vehicles to conduct seatbelt surveys. Safety personnel will coordinate vehicle stops with the DFC. Squadron personnel may be selected to conduct seat belt surveys for their organizations. Vehicle operators are responsible for ensuring all vehicle occupants wear/utilize required restraint devices.

4.1.2. **(Added)** It is prohibited to us any type of device intended to detect and/or interfere with signals emitted by traffic radar equipment while on MHAFB.

4.1.3. **(Added)** Off Road Vehicles (ORV) are classified as vehicles, such as All-Terrain Vehicles (ATV) and dirt bikes designed primarily for off-road use. Privately owned ORV use is ***not*** authorized on MHAFB. Government owned/furnished ORV use ***is*** authorized with the following stipulations.

4.1.3.1. **(Added)** ORVs ***will not be*** operated with articles causing obstruction to the operator's view, preventing them from keeping both hands on the steering wheel/handlebars, and/or operating the vehicle in a safe manner.

4.1.3.2. **(Added)** ORV operators will sit upon permanently mounted standard seats, and operate the ORV from a seated position upon the permanently mounted standard seat, facing forward, with one leg on each side. Passengers are ***not*** allowed on ATVs or ORVs not designed for passengers.

4.1.3.3. **(Added)** The speed limit for ORVs operated on MHAFB is 15 mph.

4.1.3.4. **(Added)** While riding an ORV, it is prohibited to wear a device, which has ear/headphones (e.g., MP3 players, cellular phones), or other devices that reduce the operator's hearing ability.

4.1.3.5. **(Added)** In addition to the requirements identified in AFI 91-207, the protective equipment listed in this supplement is mandatory at all times for ORV operators while operating an ORV on MHAFB.

4.1.3.6. **(Added)** All personnel who bicycle, roller blade, in-line-skate, skateboard, roller blade, or use Gopeds on MHAFB will wear approved protective helmets. Helmets will meet American National Standards Institute (ANSI) or Snell Memorial Foundation criteria.

4.1.3.7. **(Added)** The use of coaster-wheeled conveyance (defined as any form of object propelled afoot to include, but not limited to, in-line skates, roller skates, scooters, or skateboards) are restricted on any roadway, parking lot, or sidewalk, except in established areas designated by the Installation Commander.

4.1.5.1. **(Added)** Personnel operating ORVs without a front windshield will properly wear eye protection that meets the following standards: goggles, wrap around glasses, or a full-face shields (properly attached to helmets) designed to meet or exceed ANSI Standard Z87.1, or United Nations Economic Commission for Europe (UNECE) 22.05 or BS6658 for impact and shatter resistance.

4.1.5.2. **(Added)** Government owned/furnished ORVs must have an installed Rollover Protection System (ROPS).

4.1.5.3. **(Added)** ORVs will be equipped with the following safety equipment; headlights, taillights, horn, and mirrors capable of viewing traffic from the rear and sides. ORVs must follow the same guidelines as POV use. If there are no turn indicators, the operator must be familiar with and capable of using arm signals to indicate the operator’s intent.

4.1.5.4. **(Added)** ORVs will be equipped with the appropriate number of seatbelts for the operator and passengers. Passengers may not ride it the back of the UTV (i.e., tailgate, bed).

4.1.6. **(Added)** Motorcycles, Mopeds, and Motorized Scooter (Motor-Driven Cycles) Standards. Operators must comply with special requirements when driving motor-driven cycles, or other open two, three, and four wheeled vehicles powered by a motorcycle-type engine. In addition to the requirements identified in **2.1.1.5** of this supplement and AFI 91-207, operators will obey the following:

Figure 4.1. (ADDED) Examples of Motor-Driven Cycles.



4.1.6.2. **(Added)** Articles will not be carried that obstruct the operators view, or that prevent them from keeping both hands on the handlebars and/or operating the vehicle in a safe manner.

4.1.6.3. **(Added)** Drive on permanently mounted standard seats only.

4.1.6.4. **(Added)** Only drive while in a sitting position astride the seat, facing forward, with one leg on each side of the vehicle.

4.1.6.5. **(Added)** If the is properly designed to carry passengers the maximum number of persons permitted to ride on a motor-driven cycle is two, unless "the vehicle" is equipped with a sidecar or cab designed to carry additional passengers. Do not carry other passengers; nor will other passengers ride on a motor- driven cycle. No passengers are allowed on mopeds at any time.

4.1.6.6. **(Added)** Motor-driven cycles are entitled to full use of road lanes, and other types of motor vehicles shall not be driven in such a manner that deprives them full use. Motor-driven cycles will not:

4.1.6.6.1. **(Added)** Never pass vehicles in the same lane occupied by the vehicle being overtaken.

4.1.6.6.2. **(Added)** Do not drive between lanes of traffic, adjacent lines, or rows of vehicles.

4.1.6.6.3. **(Added)** Never operate more than two motor-driven cycles side by side in a single lane of traffic.

4.1.6.7. **(Added)** Motor-driven cycles will be equipped with the appropriate number of footrests for the operator and passenger, other than those passengers in a sidecar or enclosed cab.

4.1.6.8. **(Added)** Motor-driven cycles will have a minimum of one rearview mirror.

4.1.6.9. **(Added)** Protective Equipment. In addition to the requirements identified in AFI 91-207, the following protective equipment is mandatory at ***all times*** for operators and passengers, while operating or riding a motor-driven cycle on MHAFB. **Note:** Active duty military will comply with these requirements regardless if on or off duty and on or off the installation.

4.1.6.9.1. **(Added)** A properly fastened (under the chin) protective helmet meeting the standards of the Snell Memorial Foundation, the ANSI, or DOT.

4.1.6.9.2. **(Added)** Impact-resistant goggles or a full-face shield attached to the helmet. Impact resistant glasses/sunglasses ***do not*** fulfill this requirement. *EXCEPTION:* Goggles or a full-face

shield are not required if the motor-driven cycle is equipped with a windshield that is equal in height to or above the top of the helmet in the properly upright-seated position.

4.1.6.9.3. **(Added)** Sturdy closed heel and toe, over the ankle footwear.

4.1.6.9.4. **(Added)** Long sleeved shirt or jacket, and long pants.

4.1.6.9.5. **(Added)** Full-fingered gloves. Gloves or mittens will be made from leather or other abrasion-resistant material.

4.1.6.9.6. **(Added)** While operating a motorcycles riders should select motorcycle jacket and pants constructed of abrasion resistant materials such as leather, Kevlar® and/or Cordura® containing impact absorbing padding.

4.1.6.9.7. **(Added)** In addition to the required protective equipment identified above, riders should select personal protective equipment (PPE) that incorporates fluorescent colors and retro-reflective material.

4.1.7. **(Added)** Motor-Driven/Assisted Skateboards. Even though not prohibited on MHAFB, the use of these devices should only be operated by a responsible and mature individuals over 14 years of age. Due to the speed of motor-driven skateboards, operators will follow the rules and guidelines as if they were operating a motor-driven bicycle, moped, and/or motor-driven scooter as set forth in AFI 91-207.

4.1.7.1. **(Added)** No person operating a motor-driven/assisted skateboard shall transport extra fuel in a separate container or alter the fuel reservoir from the original manufacturer's design. This includes the prohibition of physically attaching fuel packs or containers to the operator's person.

4.1.7.2. **(Added)** No person shall operate a motor-driven/assisted skateboard in a manner causing excessive, unnecessary, or offensive noise which disturbs the peace and quiet of any neighborhood or which causes discomfort or annoyance to a reasonable person of normal sensitivity.

4.1.7.3. **(Added)** No person shall operate a motor-driven/assisted skateboard unless it is equipped with a brake.

4.1.8. **(Added)** Prohibited Areas of Operations. Motor vehicles (including motor-driven cycles and ORVs) will only operate on surfaces specifically designated as a street, access road, parking area or RV area.

4.1.8.1. **(Added)** Motor vehicles will not be operated or parked, including two wheeled motor vehicles and ATVs, on seeded areas or in wooded areas unless they are military vehicles designed for off-road use on official business. *EXCEPTION:* When parking is directed/allowed for special events (e.g., air shows, open house or other special base-sponsored events), or temporarily when washing the vehicle.

4.1.8.2. **(Added)** When roadways have been divided into two or more clearly marked lanes of traffic, operate vehicles within a single lane, and do not move from that lane until operator is certain the movement can be conducted safely.

4.1.8.3. **(Added)** Vehicles operated on roadways or parts of roadways designated for one-way traffic will only be operated in the direction indicated by official traffic control devices or SF personnel.

4.1.8.4. **(Added)** Upon roadways of sufficient width, operate vehicles upon the right half of the roadway, except as indicated below:

4.1.8.4.1. **(Added)** When proceeding at less than the normal speed of traffic, operate vehicle in the right-hand lane available for traffic, or as close as practical to the right-hand curb or edge of roadway.

4.1.8.4.2. **(Added)** When an obstruction exists making it necessary to drive to the left of the center of the roadway, persons doing so must yield the right-of-way to vehicles traveling in the proper direction on the unobstructed portion of the roadway.

4.1.8.4.3. **(Added)** Keep utility-type mini-trucks/cart-type vehicles without occupant protective devices to non-traffic environments, or to a speed of 15 MPH or less (a traffic environment is a designated roadway regularly traveled by vehicles) when it is necessary to use these types of vehicles in a traffic environment, ensure vehicle is visible to traffic approaching from the rear. At a minimum, use a reflective sign or other material on these vehicles.

4.1.8.4.4. **(Added)** Vehicles will stop during the playing of reveille or retreat to pay respect for Air Force traditions. Offenders will be issued a DD Form 1408, assessing one point against their driving record.

4.1.9. **(Added)** Display of Plates and Stickers.

4.1.9.1. **(Added)** License plates assigned to a motor vehicle shall be displayed as indicated by the rules and regulations in the state which the vehicle is registered.

4.1.9.2. **(Added)** Every license plate shall, at all times, be securely fastened to prevent the plate from swinging, be at a height not less than 12 inches from the ground, measuring from the bottom of the plate, be in a place and position to be clearly visible from 75 feet away, and shall be maintained free from foreign materials and in a condition to be clearly legible.

4.1.10. **(Added)** Lamps and Lights.

4.1.10.1. **(Added)** Use headlights from sunset to sunrise. This does not include “daytime running lights.” Headlights should also be used during fog, smoke, or rain when windshield wipers are activated, and at any other time when persons and vehicles cannot be seen clearly. Points are assessed for operating an unsafe vehicle.

4.1.10.2. **(Added)** Visibility distance and mounted height of lamps.

4.1.10.2.1. **(Added)** Use headlights during periods of reduced visibility (rain, fog, smoke, when windshield wipers are activated) and at any time when there is not sufficient light to render clearly discernible persons and vehicles on the roadway at a distance of 500 feet. ***Do not*** use parking lights, clearance lights or “daytime running lights” in lieu of headlights.

4.1.10.2.2. **(Added)** Vehicle operators entering MHAFB will turn headlights off and use only parking lights when they are 200 feet from the MHAFB entry control point, as long as doing so will not cause a safety hazard during period of reduced visibility. This requirement does not include “daytime running lights.”

4.1.10.2.3. **(Added)** Stop Lamps. Equip vehicles operating on MHAFB with stop lamps on the rear of the vehicle which shall display a red or amber light, or any shade of color between red and amber, visible from a distance of not less than 100 feet to the rear in normal sunlight, and

which shall be actuated upon application of the foot brake, and which may, but not needed, be incorporated with one or more other rear lamps.

4.1.10.2.4. **(Added)** Signal Lamps. Equip vehicles operating on MHAFB with lamps showing to the front and rear an intention to turn either left or right. When lamps are used for this purpose, the lamps showing to the front shall be located on the same level and as widely spaced laterally as practicable, and when in use shall display a white or amber light, or any shade of color between white and amber, visible from a distance of not less than 100 feet to the front in normal sunlight. The lamps showing to the rear shall be located at the same level and as widely spaced laterally as practicable, and when in use shall display a red or amber light, visible from a distance of not less than 100 feet to the rear in normal sunlight. When actuated, the lamps shall indicate the intended direction of turning by flashing the lights showing to the front and rear on the side toward which the turn is made. No stop lamp, signal lamp or device shall project a glaring light.

4.1.10.2.5. **(Added)** Headlamps. Equip every motor vehicle, other than a motor-driven cycle, with at least two headlamps, with at least one on each side of the front of the vehicle. Equip every motor-driven cycle with at least one and not more than two headlamps.

4.1.10.2.5.1. **(Added)** Mount headlamps on motor vehicles, including motor-driven cycles, at a measured height of not more than 54 inches and not lower than 24 inches from the center of the headlamp.

4.1.10.2.5.2. **(Added)** No person(s) shall operate a motor vehicle on MHAFB with headlamps which are composed of, covered by, or treated with any material, substance, system or component (other than factory installed/equipped) which, when such headlamps are not in operation, are highly reflective or otherwise opaque and nontransparent.

4.1.10.2.5.3. **(Added)** Headlamps on motor-driven cycles. The headlamps on motor-driven cycles may be of a single-beam or multiple-beam type, but shall comply with the requirements and limitations as follows: headlamps on a motor-driven cycle shall be of sufficient intensity to reveal a person or a vehicle at a distance of not less than 100 feet when the motor-driven cycle is operated at any speed less than 25 MPH, and at a distance of not less than 200 feet when the motor-driven cycle is operated at a speed of 25 MPH or more, and at a distance of 300 feet when the motor-driven cycle is operated at a speed of 35 MPH or more.

4.1.10.2.6. **(Added)** Tail lamps. Equip motor vehicles, trailers and any other vehicles operating on MHAFB with at least two tail lamps mounted on the rear, when lighted as required, shall emit a red light plainly visible from a distance of not less than 500 feet to the rear. Mount tail lamps at a height of not more than 72 inches, and not less than 20 inches from the level surface the vehicle is parked upon.

4.1.10.2.7. **(Added)** Fog Lamps (refer to **Figure 4.2**). Registered vehicles on MHAFB may be equipped with not more than two fog lamps mounted on the front, at a height of not less than 12 inches and not more than 30 inches above the level surface that the vehicle is parked upon. Fog lamps will be mounted and aimed so (when the vehicle is not loaded) the high-intensity portion of the light shall, at a distance of 25 feet ahead, project no higher than four inches below the center of the lamp from which it comes.

Figure 4.2. (ADDED) Placement and Angle of Fog and Auxiliary Lamps.



4.1.10.2.8. **(Added)** Auxiliary driving lamps. Motor vehicles entering the installation may be equipped with no more than two auxiliary driving lamps mounted in the front of the vehicle at a height not less than 16 inches and not more than 42 inches from the level surface that the vehicle is parked upon.

4.1.10.2.9. **(Added)** Emergency Flashers.

4.1.10.2.9.1. **(Added)** Emergency flashers will be utilized by disabled vehicles or vehicles stopped in such a manner they interfere with the flow of traffic.

4.1.10.2.9.2. **(Added)** Slow moving vehicles will utilize emergency flashers. Operators of slow moving vehicles will utilize hand and arm signals to indicate the intention to turn or to instruct other vehicle operators when it is safe to pass.

4.1.10.2.9.3. **(Added)** Emergency flashers will not be used during emergency response by any vehicle. Emergency response vehicle must be equipped with the appropriate emergency lights.

4.1.10.2.10. **(Added)** Customized lighting. The use of customized lighting that fails to conform to the above stated standards is prohibited on MHAFB (e.g., neon ground effect lighting, tire air-valve lights, license plate frame lighting, etc.).

4.1.11. **(Added)** Hand Signals. Give hand and arm signals from the left side of the vehicle, with the arm fully extended as described below:

4.1.11.1. **(Added)** Left turn – Hand and arm extended horizontally.

4.1.11.2. **(Added)** Right turn – Arm bent at the elbow, hand extended upward.

4.1.11.3. **(Added)** Stop or decrease speed – Arm bent at the elbow, hand extended downward.

4.1.12. **(Added)** Overtaking and Passing.

4.1.12.1. **(Added)** Passing vehicles traveling in the same direction is not authorized on MHAFB, except for passing a stopped vehicle, or slow moving special-purpose vehicle when waved on by the operator.

4.1.12.2. **(Added)** Accomplish overtaking and passing another vehicle on the right under safe conditions, and if the movement can be accomplished by not driving off the pavement or main traveled portion of the roadway. Vehicle operators will only overtake and pass on the right when the vehicle overtaken is making or about to make, a left turn.

4.1.13. **(Added)** Overtaking and Passing of School Buses. A driver of a vehicle meeting or overtaking from either direction any school bus stopped on the roadway, for the purpose of

loading or unloading passengers, shall stop before reaching the school bus when there is in operation on a school bus the yellow or red visual signals are actuated and not proceed until such school bus resumes motion or the visual signals are no longer actuated.

4.1.14. **(Added)** Stopping and Standing. Except for emergency situations, vehicles will not stop in such a manner that interferes with normal traffic flow, unless otherwise directed by traffic control devices or personnel.

4.1.15. **(Added)** Exiting from alleys, driveways, or parking lots. Vehicle operators emerging from alleys, driveways, or parking lots will stop prior to driving onto a sidewalk or onto sidewalk areas extending across alleys, building entrances, roads, or driveways. If no sidewalk area exists, the vehicle will stop at the point nearest the street to be entered where the operator has a clear view of approaching traffic. Comply with these provisions at all times regardless of whether a stoplight/sign is present.

4.1.16. **(Added)** Yielding the Right of Way. Vehicle operators will yield the right-of-way in the following situations:

4.1.16.1. **(Added)** At all yield signs.

4.1.16.2. **(Added)** Vehicles and pedestrians engaged in roadway construction in maintenance areas.

4.1.16.3. **(Added)** Pedestrians in marked crosswalks, or as indicated by official traffic control devices.

4.1.16.4. **(Added)** When entering a traffic circle.

4.1.16.5. **(Added)** Upon the approach of emergency vehicle(s) using audible and/or visual signals, vehicle operators will immediately yield the right-of-way by driving to a position parallel to, and as close as possible, to the right-hand edge or curb of the roadway (clear of intersection). The vehicle will remain in that position until the emergency vehicle(s) have passed and it is safe to reenter the flow of traffic. This does not relieve the operators of emergency vehicles from the duty to drive with care and caution for the safety of others.

4.1.16.6. **(Added)** Upon the approach of troop formations and/or movements.

4.1.17. **(Added)** Speed Limits.

4.1.17.1. **(Added)** Vehicles will not be operated at a speed greater than is reasonable and prudent under existing road/weather conditions regardless of the posted limit.

4.1.17.2. **(Added)** At all times, speed will be controlled as necessary to avoid colliding with a person, vehicle or other conveyance on or entering the roadway.

4.1.17.3. **(Added)** Vehicles will not be driven over the posted speed limits, except as authorized by 366 FW/CC or designee (e.g., emergency response vehicles).

4.1.17.4. **(Added)** Where no special hazards exist that require lower speed (e.g., weather conditions), vehicles will not exceed the speed limits identified in **Table 4.1.**

Table 4.1. (ADDED) Speed Limits.

Area of Operation	Speed Limit
Housing Area Residential Areas	Main Roads: 30 MPH Areas that have access to drive/garage: 15 MPH
Parking Lots	10 MPH, unless otherwise posted
All Other Areas	30 MPH, unless otherwise posted
Troop Formations	5 MPH

4.1.17.5. **(Added)** Vehicles will not be operated at such a slow speed that they impede the normal and reasonable flow of traffic, except when reduced speed is necessary for the safe operation, or in compliance with the law. Vehicles operated at slow speeds will utilize their emergency flashers at all times.

4.1.20. **(Added)** Transporting Alcoholic Beverages.

4.1.21.1. **(Added)** Open containers of alcoholic beverages will not be transported in any area of the vehicle where the operator and passengers have immediate access.

4.1.21.2. **(Added)** Unopened containers of alcoholic beverages may be carried anywhere in the vehicle.

4.1.22. **(Added)** All Privately Owned Firearms (POF) will be transported, carried, and stored IAW the 366 FW IDP.

4.1.23. **(Added)** Vehicle Operations on the MHAFB Flight line. Vehicle**s will not** be operated on the MHAFB flight line, unless specifications and requirements identified in MHAFBI 13-202, *Vehicle Operations on the Airfield*, are complied with.

4.1.24. **(Added)** Vehicle Operations within Restricted Areas. Vehicle**s will not** be operated within a restricted area, unless the specifications and requirements identified in the 366 FW IDP are complied with.

4.1.25. **(Added)** Designation of Authorized Emergency Vehicles.

4.1.25.1. **(Added)** Any person who operators a motor vehicle in a manner which would lead one to reasonably believe it was an emergency vehicle without prior approval of the 366 FW/CC or designee shall be subject to actions including, but not limited to non-judicial punishment.

4.1.25.2. **(Added)** Commanders will screen emergency vehicle operators carefully to ensure only highly qualified individuals are permitted to operator emergency vehicles. These individuals will receive periodic briefings from their supervisors on the proper operation of emergency vehicles.

4.1.25.3. **(Added)** Emergency vehicle operators responding to an emergency call, or in the pursuit of an actual or suspected offender, may:

4.1.25.3.1. **(Added)** Park and/or stop regardless of the provisions of this supplement, provided doing so does not increase the risk of the vehicle operator or other vehicles.

4.1.25.3.2. **(Added)** After slowing down as necessary, and sounding the emergency siren to ensure safe operation, proceed past a stoplight/sign without coming to a complete stop.

4.1.25.3.3. **(Added)** Exceed the posted speed limit at a speed as safe as the operator can effectively operate the vehicle IAW their skill level. They must consider existing road/weather conditions and hazards, so not to endanger life or property. The operator's actions will be reasonable and prudent at all times.

4.1.25.3.4. **(Added)** Disregard regulations governing directions of movement or making turns as long as doing so does not endanger any life.

4.1.25.4. **(Added)** Exceptions granted herein to operators of authorized emergency vehicles apply only when the operator is using both audible and visual signal (sirens and flashing lights). Emergency vehicle operators will not assume right-of-way based solely on the fact emergency equipment (flashing lights and siren) is in operation.

4.1.25.5. **(Added)** Emergency vehicle operators will not exceed the posted speed limit or disregard traffic control devices when responding to drills or exercises. Use of emergency lights or sirens are authorized in these instances; however, emergency equipment will only be used as necessary to complete the mission, and carefully controlled by the dispatching agency.

4.1.25.6. **(Added)** The above provisions do not relieve emergency vehicle operators from the duty and responsibility to drive with regard to the safety of individuals, nor will such provisions protect the operators from the consequences of reckless disregard for the safety of others.

4.1.26. **(Added)** Pedestrian Rights and Responsibilities.

4.1.26.1. **(Added)** Pedestrians are subject to the traffic laws identified in this instruction, and will obey the instructions of traffic control devices and/or personnel controlling traffic.

4.1.26.2. **(Added)** When traffic control devices are not in place or operational, vehicle operators will yield the right-of-way to pedestrians crossing the roadway within a marked crosswalk.

4.1.26.3. **(Added)** Pedestrians will not leave a curb or other safety area to walk or run into the path of a vehicle that is close enough to constitute a hazard.

4.1.26.4. **(Added)** When sidewalks are not available, pedestrians walking upon roadways will walk on the shoulder facing oncoming traffic as far as practical from the edge of the roadway.

4.1.26.5. **(Added)** Upon the approach of emergency vehicle(s) making use of audible or visual signals, pedestrians will yield the right-of-way by immediately moving to a position out of the path of emergency vehicle(s), and remain in that position until the emergency vehicle(s) have passed.

4.1.26.6. **(Added)** Jogging on roadways is permitted as long as the jogger is facing oncoming traffic and follows the rules pertaining to pedestrians (exception to this rule is formation runs and on-base races/fun runs).

4.1.26.7. **(Added)** Persons jogging during the hours of darkness or reduced visibility will wear a reflective outer garment that is clearly visible and uncovered.

4.1.26.8. **(Added)** While jogging on or near roadways, it is prohibited to use any electronic device (e.g., MP3 players, cellular phones) with ear/headphones in/over both ears or other devices, which would reduce the jogger’s hearing ability. However, the use of other devices,

which have an external speaker or one ear/headphone, is authorized. The restrictions on devices with two ear/head-phones apply only to persons jogging on or near roadways.

4.1.27. **(Added)** Fleeing or Attempting to Elude Law Enforcement Officials. A driver of a motor vehicle who willfully flees or attempts to elude a pursuing SF vehicle when given a visual and/or audible signal to bring the vehicle to a stop, shall be subject to actions, to include, but not limited to, loss of on-base driving privileges, non-judicial punishment (as applicable). Sufficient proof is that a reasonable person knew or should have known the visual and/or audible signal given by a SF member was intended to bring the pursued vehicle to a stop.

4.1.27.1. **(Added)** An operator who violates the above provisions and while so doing; is traveling in excess of the posted speed limit, causes damage to the property of another or bodily injury to another, or drives their vehicle in such a manner as to endanger or likely to endanger the property of another or the person of another; shall have their installation driving privileges suspended for a minimum of one year to a maximum of three years.

4.1.28. **(Added)** Vehicle Maintenance.

4.1.28.1. **(Added)** Vehicle maintenance, outside of the Auto Skills Shop is prohibited on MHAFB, exception is minor emergency maintenance, i.e. flat tire, jump starting.

4.1.29. **(Added)** Towing Operations.

4.1.29.1. **(Added)** Only tow vehicles utilizing equipment specifically designed for towing (e.g., tow bar, tow chain, or trailer).

4.1.29.2. **(Added)** Whenever a vehicle is being towed on other than a trailer, utilize emergency lights or flashers.

4.1.29.3. **(Added)** Conduct towing operations at a speed that allows both vehicles to stop if necessary, and will not endanger other vehicles or persons.

4.1.29.4. **(Added)** Personnel in physical control of a vehicle being towed are subject to the same standards and policies set forth by this instruction.

4.1.30. **(Added)** Unsafe Vehicles.

4.1.30.1. **(Added)** No person shall operate or move any motor vehicle and/or trailer on any roadway unless the required equipment is in good working order and the vehicle is in such mechanical condition as to not endanger the driver, occupants, or any person upon the roadway.

4.1.30.2. **(Added)** Vehicles having safety defects which render the operation of the vehicle unsafe (e.g., broken windshield, bald tire(s), etc.), will be cited via DD Form 1408 or USDCVN, and will not be operated until the discrepancy is corrected.

4.1.30.3. **(Added)** Vehicles having minor safety defects (e.g., broken lights or lenses, inoperative lights, etc.), may be issued a 72 -hours “Fix-It” DD Form 1408, and instruct the operator to report to the 366 SFS/S3 section in Building #1013, within 72 hours with the discrepancy corrected. The 366 SFS/S3 section will maintain “Fix-It” tickets for a 72-hour period, after that time, forward the unresolved citations to A7SRfor processing as a normal citation.

4.1.30.4. **(Added)** It is unlawful to leave children (under 12 years of age) or animals unattended in vehicles where the interior temperature may reach dangerous levels, or if vehicle keys are left

accessible to children or where conditions are deemed hazardous by a reasonable person. In such incidents, SFS will accomplish a AFJIS/AF Form 3545, and the 366 FW/CC or designee will consider a one year driving revocation.

4.1.31. **(Added)** Excessive Noise.

4.1.31.1. **(Added)** Excessive noise is defined as any loud noise emitting from a vehicle that creates a negative or bothersome atmosphere. Excessive noise includes, but is not limited to vehicle mufflers (e.g., customized or broken), and attached or unattached stereo systems.

4.1.31.2. **(Added)** Vehicle stereo/radio systems, that are audible at a distance of 10 feet or more from a vehicle is considered excessively loud.

4.1.32. **(Added)** Graffiti/Decals/Custom Painting and Markings. Graffiti, decals, custom paint and/or markings are allowed as long as they are not obscene or offensive and are in "good taste."

4.1.34. **(Added)** Tampering With a Vehicle. No person may, without the consent of the owner or person in charge of a vehicle, climb into or upon such vehicle with the intent to commit any crime, malicious mischief, or damage, or while a vehicle is at rest and unattended shall attempt to manipulate any of the levers, starting device, brakes or other mechanism, or to set the vehicle in motion. Except that the foregoing provision shall not apply when the act is an emergency, in furtherance of public safety or convenience, or under the direction of a SF member.

4.1.35. **(Added)** Possession of Driver's License and Exhibited on Demand. Every licensee must have their driver's license in their possession at all times when operating a motor vehicle and shall, upon demand, surrender the driver's license to the SF member for his/her inspection.

4.1.35.1. **(Added)** 366 SFS will verify through an authoritative data base if the individual has a current/valid driver's license. If the individual has a valid license at the time of the traffic stop, but does not have it in their possession, the SF member will issue a citation for failure to present proof of current/valid driver's license.

4.1.35.2. **(Added)** If the driver does not have a valid driver's license, they will be issued a citation and their installation driving privileges will be revoked IAW AFI 31-218(I), **Table 5-1** If there are no other current operators present the vehicle will be safely parked.

4.1.36. **(Added)** Unlawful Use of a Driver's License**.** Offenders shall be subject to actions, to include, but not limited to non-judicial punishment of the following:

4.1.36.1. **(Added)** Display, cause, or permit to be displayed or have in possession any mutilated or illegible, cancelled, revoked, suspended, disqualified, fictitious or fraudulently altered driver's license.

4.1.36.2. **(Added)** To lend their driver's license to any other person or knowingly permit the use of their driver's license by another.

4.1.36.3. **(Added)** Display or represent as one's own a driver's license not issued to them.

4.1.37. **(Added)** Foreign/Secondary Issued License during Suspension or Revocation. No person whose driver's privileges to operate a motor vehicle has been suspended or revoked shall operate a motor vehicle under a driver's license, permit, or registration certificate issued by any other jurisdiction or otherwise during the suspension or after revocation until a new driver's license is obtained when and as permitted under this instruction.

4.1.38. **(Added)** Vehicle Registration Card. The vehicle registration certificate issued for a vehicle required to be registered by the provision of this instruction shall, while the vehicle is being operated upon a roadway, be in the possession of the operator or carried in the vehicle and be subject to inspection by any traffic official.

4.1.39. **(Added)** Proof of Vehicle Insurance.

4.1.39.1. **(Added)** The insurance for a vehicle required to be registered by the provisions of this instruction shall, while the vehicle is being operated upon a roadway, be in the possession of the operator or carried in the vehicle and be subject to inspection by any traffic official. This includes being able to provide proof of insurance electronically via a cellular/smart telephone or any other electronic device.

4.1.39.2. **(Added)** The insurance issued for a vehicle required to be registered shall maintain no less than the minimum of $25,000/$50,000 for personal injury, $15,000 for property damage.

4.1.40. **(Added) Moving** Violations. Refer to Table 2.1.

4.2.1.1. **(Added)** All major vehicle accidents will be investigated by trained SF accident investigators. If a trained accident investigator is not available, the on duty SF Flight Chief may assign accident investigation duties to any on-duty SF member who has the necessary technical expertise and on-the-job training to perform the accident investigation. Citations will be issued when there is probable cause to believe a violation of the Installation Traffic Code exists or has occurred.

4.2.1.2. **(Added)** The 366 FW/CC has deemed a major vehicle accident as:

4.2.1.2.1. **(Added)** Accidents where anyone involved complains of possible injuries or requests medical attention, even if no injuries are apparent.

4.2.1.2.2. **(Added)** Accidents involving a fatality.

4.2.1.2.3. **(Added)** Accidents with an estimated property damage of $10,000 or more.

4.2.1.2.4. **(Added)** Accidents that result in disabling vehicle damage.

4.2.1.2.5. **(Added)** Accidents that are difficult to explain and/or may result in a court-martial offense.

4.2.1.3. **(Added)** All other accidents are considered minor vehicle accidents, which require notification to the Emergency Control Center (ECC)/Base Defense Operations Center (BDOC) and exchange of driver's information between the affected vehicle operators. Accidents where fault is determined, the offender will be issued a citation.

4.2.2. **(Added)** A driver of a vehicle involved in an accident resulting only in damage to a vehicle which is driven or attended by any person shall immediately stop the vehicle at the scene of the accident, or as close as possible, and shall immediately return to, and in every event remain at the scene of the accident until the exchange of names and addresses, the names of insurance agents/companies, motor vehicle registration numbers, and upon request drivers' licenses, or until notification of 366 SFS. A stop as required by this section shall be made without obstructing traffic more than necessary. A person(s) failing to stop or to comply with the requirements under these circumstances will be subject to actions, to include, but not limited to non-judicial punishment.

4.2.3. **(Added)** A driver of a vehicle which collides with any unattended vehicle shall immediately stop, and then either locate and notify the operator or owner of the vehicle of the name and address of the driver and owner of the vehicle striking the unattended vehicle, or shall leave in a conspicuous place in or on the vehicle struck a written notice giving the name and address of the driver and of the owner of the vehicle doing the striking, along with a statement of the circumstances.

4.2.4. **(Added)** A driver of a vehicle involved in an accident resulting in damage to fixtures or other property legally upon or adjacent to a roadway shall take reasonable steps to locate and notify the owner or person in charge of the property of the fact, of his/her name and address, the name of his/her insurance agent or company, the motor vehicle registration number, and upon request and if available exhibit his/her driver's license.

4.2.5. **(Added)** Whenever the driver of a vehicle is physically incapable of giving immediate notice of an accident as required, and there was another occupant in the vehicle at the time of the accident capable of doing so, the occupant shall give notice of the accident to 366 SFS.

4.3.1. **(Added)** Major Vehicle Accidents. Military members involved in on/off-base major vehicle accidents will immediately notify the ECC, 208-828-2256 (or nearest military installation) and appropriate civilian authorities (for off base major accidents) as soon as possible. Accomplish an AF Form 1315 and AF Form 3545 for on-base major vehicle accidents.

4.3.1.1. **(Added)** The ECC/BDOC is the focal point for gathering off-base accident information of military affiliated personnel operating government owned, rented or leased vehicles. Information is recorded in the SF blotter, along with the associated case number from the investigating police agency.

4.3.3.6. **(Added)** The DFC has delegated authority to locally respond and investigate accidents (to include minor accidents) to the on-duty SF Flight Chief.

4.3.3.6.1. **(Added)** SF personnel may respond to off-base vehicle accidents within a five mile radius of MHAFB, as directed by the on-duty Flight Chief with the approval of the 366 FW/CC. When SF personnel respond to off-base vehicle accidents, they will only assist civilian authorities, and will not attempt to enforce civilian laws. When notified of an off-base vehicle accident, the ECC will ensure civilian authorities are notified, and will notify the 366 FW/CP, sponsor and the respective First Sergeant(s) of military personnel and family members involved.

4.3.3.6.2. **(Added)** Minor Vehicle Accidents. Military members will report to the ECC/BDOC, 828-2256, if they are involved in an on-base minor accident or an off-base accident that results in damage to military property. The ECC will use locally devised notification matrix and/or checklist to ensure notification of appropriate base and civilian agencies.

4.3.3.6.3. **(Added)** Personnel involved in on-base vehicle accidents must immediately report the mishap to the ECC/BDOC. Failure to report an accident may be the basis for disciplinary action or a suspension.

4.3.3.6.4. **(Added)** Minor accidents not involving an immediate SF response will be reported within 24 hours by parties involved. A minor accident is any accident in which there are no fatalities/injuries or vehicle/property damage below the amount of $10,000.

4.3.3.6.4.1. **(Added)** Drivers or owners of POVs will be required to submit a written report to the 366 SFS/Operations Section (366 SFS/S3) of an accident in the following cases; the accident

occurred on the installation, the accident involves no personal injury, the accident involves only minor damage to the POV and the vehicle can be safely and normally driven from the scene under its own power.

4.3.3.6.4.2. **(Added)** Information in the written report cannot be used in criminal proceedings against the person submitting it unless it was originally categorized as a hit and run and the offender is the person submitting the report. Rights advisement will be given prior to any criminal traffic statements provided by offenders. The Operations Section (366 SFS/S3O) will complete a 366 SFS/Form 1, *Minor Accident Worksheet* for all minor accidents.

4.3.3.6.5. **(Added)** SF personnel will respond to on-base minor vehicle accidents as staffing permits. When notified of an on-base minor vehicle accident, the ECC will:

4.3.3.6.5.1. **(Added)** Dispatch available SF personnel to maintain a safe environment. Responding SF members will complete an AF Form 1168, *Statement of Suspect/Witness/Complainant* with each party involved, a 366 SFS Form 1 and a SFS Form 22*, Incident Data Report*

4.3.3.6.5.2. **(Added)** Notify the respective First Sergeant(s) of all military personnel and family members involved.

4.3.4. **(Added)** SF personnel who prepare traffic accident investigation reports will indicate whether or not seat restraint devices were utilized at the time of the accident, and if air bags were deployed.

4.3.6. **(Added)** Use of Traffic Accident Investigation Report Data:

4.3.6.1. **(Added)** A7SR will analyze the data derived from traffic accident investigations. When frequent accidents occur in one area, A7SRwill analyze location conditions, type of accident, and other factors in an attempt to isolate causes. With the exception of Privacy Act information, A7SR will make accident data and trend analysis available to agencies requesting the data for reporting and analytical purposes. With the exception of requests filed under the Freedom of Information Act (FOIA), data is shared with the installation legal, engineer, and safety and transportation officers. The data is used to inform, educate drivers and conduct traffic engineering studies.

4.3.6.2. **(Added)** When accidents warrant, the TSCG will determine principal factors leading to the accident and recommend measures to reduce the number and severity of accidents on and off the installation. The TSCG will consist of SF, traffic engineer, safety, medical, and legal personnel. The board will determine principal factors leading to the accident and recommend measures to reduce the number and severity of accidents on and off the installation.

4.3.6.3. **(Added)** ***Do not*** barricade, block or disturb roadways, garages and/or parking lots in any manner which will conflict with traffic movement or parking without prior coordination with the DFC, 366 SFS/S3, Ground Safety Office (366 FW/SEG), and 366 CES/CEN. The placing of barriers during increased Force Protection Condition (FPCON) levels is exempt from this policy.

4.4.1. **(Added)** Reserved Parking. Reserved parking is a part of facility design coordination. Reserved parking spaces are limited to Wing/Squadron Commanders, Chief Master Sergeants, First Sergeants, visitor parking for service-oriented agencies, handicapped persons, and wing award winners (e.g., Wing Airman/Noncommissioned Officer (NCO)/Company Grade Officer (CGO) of the Quarter/Year). Facility managers will submit work requests for additional reserved

parking through 366 CES, TSCG and 366 SFS for coordination, which is forwarded to the DCOM-S for approval. If the DCOM-S approves the request for additional reserved parking, the approval is then forwarded to 366 CES and a copy forwarded to the Facility Manager who will maintain a copy of approved request. The number of available spaces, facility design and layout, traffic flow, and number of vehicles using facilities help to determine the number and location of reserved parking spaces. The Americans with Disability Act (ADA) requirements is followed when determining Handicap parking.

4.4.3. **(Added)** MHAFB does not utilize Unit Parking Wardens or Facility Managers to monitor and cite parking violation at their facilities.

4.4.4. **(Added)** Parking violations. Offenders of parking rules are issued a DD Form 1408. Individuals cited for the following violations will be assessed 2 points for each violation:

4.4.4.1. **(Added)** Parking within 15 feet of a fire hydrant.

4.4.4.2. **(Added)** Parking within 20 feet of a crosswalk at an intersection.

4.4.4.3. **(Added)** Parking within 20 feet of the driveway entrance to a fire station.

4.4.4.4. **(Added)** Parking against the flow of traffic.

4.4.4.5. **(Added)** Parking in seeded areas.

4.4.4.6. **(Added)** Parking in reserved/designed area (other than handicap).

4.4.4.7. **(Added)** Parking on a sidewalk.

4.4.4.8. **(Added)** Parking within an intersection or crosswalk.

4.4.4.9. **(Added)** Parking in any manner to disrupt the flow of traffic.

4.4.4.10. **(Added)** Parking at any location where traffic control devices prohibit parking.

4.5. **(Added) Off-installation Traffic Activities.** Civil authorities enforce traffic laws in areas not under military control. Likewise, SF personnel investigate on-base accidents and incidents that may be of interest to local authorities. Consequently, the DFC has determined that all traffic-related reports received from outside agencies will be processed and safeguarded in the same manner as interagency traffic reports. Disposition of said reports will also be handled in the same manner as interagency reports. Memoranda of Understandings (MOUs) have been established with local law enforcement agencies and the 366 SFS. These MOUs outline general responsibilities and procedures concerning joint law enforcement support and procedures for the sharing and exchanging of information to include procedures for receiving and processing of security traffic and related incidents reports.

4.6. **(Added) Traffic Violation Reports.**

4.6.1. **(Added)** The 366 FW/CC has established the following procedures for disposing of traffic violation cases through administrative or judicial action consistent with the UCMJ and federal law. Additionally, A7SR will forward a copy of incident reports on military personnel, DoD civilian employees, and contractors apprehended for intoxicated driving to the Substance Abuse Office, Drug and Alcohol Control.

4.6.2. **(Added)** Violations of US Air Force, MHAFB, State, and/or Federal traffic codes/laws may result in the issuance of either a DD Form 1408 or USDCVN as indicated below. Prior to

issuing either citation, personnel must have completed training and certification by a competent official (e.g., supervisor, 366 SFS Training Section (366 SFS/S3OT), annotated on AF Form 797, *Job Qualification Standard Continuation/Command JQS*).

4.6.3. **(Added)** DD Form 1408s are issued to the following personnel; active duty military personnel, to include members of the AFRC and ANG on active duty, Cadets/Midshipmen of the Military Academies to include the Coast Guard Academy, reservists on orders or performing inactive duty training, including commuting to and from training, and guardsman in federal service under Title 10 of the USC. Title 10 status is reflected on the guardsman's orders.

4.6.4. **(Added)** The DD Form 1408 is issued to all persons, regardless of military affiliation, for parking violations, "fix-it-tickets" (citations for minor infractions that must be fixed immediately (e.g., nonoperational tail-light, improper display of license plate, etc.)), and violations of solely USAF and MHAFB traffic codes. If issuing a citation for a "fix-it-ticket" each violation must be written on a separate DD Form 1408.

4.6.5. **(Added)** Preparation and distribution of the DD Form 1408.

4.6.5.1. **(Added)** The Patrolman will write, stamp or place a label on the back of the pink copy (given to the offender) with the following: "If you wish to rebut this citation, report to, 366 FW/A7SR Bldg. 512, Room 2002B within five duty days. If you do not notify A7SR of a rebuttal request, it is assumed you do not wish to rebut the citation. Please notify your Commander or First Sergeant, or Sponsor within 24 hours, or the next duty day."

4.6.5.2. **(Added)** The white and yellow copies are forwarded to A7SR for assessing points to offender driving record.

4.6.5.3. **(Added)** If the offender does not notify A7SR within five duty days of their desire to rebut the citation, A7SR will assess points (as appropriate) to offender's driving record and complete the administrative process by annotating "Did not rebut" and endorsing the infractions on the back of the white copy. If, through accumulation of points or specific offense, the offender has met the requirement to have driving privileges suspended or revoked, A7SR will have the offender sign a *Notice of Possible Base Driving Privilege Suspension Letter*, and inform the offender that the notice was forwarded to the 366 FW/CC or designee for determination of driving suspension or revocation action. A7SR will notify the offender of the decision, and in instances of suspension of driving privileges A7SR will notify the offender of additional due process rights.

4.6.5.4. **(Added)** A7SR will then file the white and yellow copies in the office file plan. If the offender is assigned to another AF or other DoD installation, A7SR will log the violation into AFJIS and forward a copy of the violation to the member's home installation Security Forces Reports and Analysis section or Military Police office. A7SR will annotate the forwarding of report/citation in the AFJIS narrative. The individual's home station is responsible for the disposition/commander's action.

4.6.5.5. **(Added)** A7SR will notify the military member's (sponsor's) First Sergeant or Commander, (or the 366th Contracting Squadron (366 CONS) for contractors), via e-mail, of the reason for the violation/warning and points assessed. Previous traffic violations committed by the offender and points assessed will also be provided to offender's First Sergeant/Commander.

4.6.5.6. **(Added)** A7SR will send copies of DD Form 1805 citations and traffic violation reports for DoD civilian employees to the supervisor of the offender.

4.6.6. **(Added)** Traffic Citation Rebuttals (DD Form 1408).

4.6.6.1. **(Added)** If the offender notifies A7SR of their intention to refute the ticket within five duty days of receipt of the citation, A7SR will provide them with a template/instruction to complete the rebuttal process. A7SR will also inform individual that their commander must endorse the rebuttal letter and the DD Form 1408. The offender will also be briefed to return all documents to A7SR within 14 days of their receipt of the DD Form 1408. Follow the Armed Forces Traffic Ticket rebuttal instruction in AFI 31-115.

4.6.6.2. **(Added)** The rebuttal must state the reason(s) why the citation is being rebutted and present any relevant evidence.

4.6.6.3. **(Added)** The 366 FW/CC or designee is the approving authority for rebuttals in response to the issuance of the DD Form 1408.

4.6.6.4. **(Added)** A7SR will send the rebuttal (to include the citation and all evidence) to the DFC for review. The DFC will review the letter, make recommendations, and forward the letter through 366 FW/JA to 366 FW/CC or designee for final determination. The 366 FW/CC or designee will notify the A7SR of their decision, and A7SR will then notify the offender's First Sergeant of the decision and request offender report to A7SR and acknowledge determination.

4.6.7. **(Added)** The U.S. District Court Violation Notice (USDCVN).

4.6.7.1. **(Added)** The USDCVN is issued to civilians (e.g., non-active duty military personnel, civilian employees, family members, retired personnel, AFRC/ANG not on active duty, and civilian contractors) for violations of Idaho/Federal traffic codes/laws. Note: a USDCVN will not be issued to individuals under the age of 18 unless approved by 366 FW/JA or the U.S. Attorney's Offices.

4.6.7.2. **(Added)** If a DoD civilian employee is issued a USDCVN, they are responsible for reporting the citation to their supervisor or sponsor within 24 hours, or the next duty day.

4.6.7.3. **(Added)** Do not issue or refer USDCVN for the following reasons:

4.6.7.3.1. **(Added)** The operator is driving a GMV at the time of the violation.

4.6.7.3.2. **(Added)** A U.S. Magistrate is either not available or lacks jurisdiction to hear the matter because the violation occurred in an area where the Federal Government has only proprietary legislative jurisdiction.

4.6.7.3.3. **(Added)** Mission requirements make referral of offenders impractical.

4.6.7.3.4. **(Added)** A U.S. Magistrate is available but the accused refuses to consent to the jurisdiction of the court and the U.S. Attorney refuses to process the case before a U.S. District Court.

4.6.7.3.5. **(Added)** USDCVN will not be issued for parking violations.

4.6.7.4. **(Added)** Only one violation will be recorded per USDCVN.

4.6.7.5. **(Added)** The USDCVN is used to refer violations of Idaho Statute traffic violations to the U.S. magistrate. They will also be used in conjunction with the AFJIS/AF Form 3545 for

incidents involving driving on suspended/revoked license, theft, DUIs, trespassing, or cases involving knowledge of, or intentional possession of controlled substances. See **Attachment 3**, *U.S. District Court Violation Notice (USDCVN) Forfeiture Schedules,* for common violations. **NOTE:** A USDCVN will only be issued for shoplifting where the value of the merchandise exceeds $100.

4.6.7.6. **(Added)** The amount of the fine and if a mandatory court appearance is required by the offender is determined IAW the forfeiture schedule **(Attachment 3)** approved by the U.S. Magistrate. Dates for appearing in the Magistrate Court, located in Boise, Idaho are established by the Central Violations Bureau (CVB) in San Antonio, TX.

4.6.7.7. **(Added)** The local Magistrate Court will notify 366 FW/JA of all court dates involving USDCVNs issued on MHAFB.

4.6.7.8. **(Added)** A7SR is responsible for tracking court disposition of all CVNs, to include whether or not the offender was found guilty and the amount of fine imposed by the Magistrate Court. A7SR will conduct a monthly check of disposition of USDCVN via CVB link **search@CVB.uscourts.gov** and assess points to offender driving record using AFJIS.

4.6.8. **(Added)** Preparation and distribution of the USDCVN.

4.6.8.1. **(Added)** This pre-numbered form is issued through standard publication channels and is only accountable once it is issued to an offender.

4.6.8.2. **(Added)** Before issuing this form, the Patrolman will stamp (type) in black ink the specific address of the clerk of the US District Court CVB to which the offender must address the communication, on the reverse of the offender's copy (manila card stock) of the four-part form.

4.6.8.2.1. **(Added)** The address indicated is stamped on the envelope copy of all USDCVN, "Central Violations Bureau, P.O. Box 780549, San Antonio, TX 78278-0549."

4.6.8.2.2. **(Added)** Detailed instructions for properly completing the USDCVN are contained in AFMAN 31-120, *Security Forces Systems and Administration*.

4.6.8.3. **(Added)** Identify the assimilation of state traffic laws by a specific State code referenced in the CODE SECTION block of the USDCVN, or in a complaint filed with the US Magistrate.

4.6.8.4. **(Added)** Copy 2 (yellow) and copy 4 (envelope) is provided to the offender. The offender is instructed to mail copy 4 to CVB. When the citation is issued, the offender is briefed on the reason for the citation, fine imposed (as applicable), and whether a court appearance is mandatory.

4.6.8.5. **(Added)** If the violation carries a mandatory court appearance, the offender is briefed and notified, via mail, by the CVB of their court date.

4.6.8.6. **(Added)** If the violation does not carry a mandatory court appearance, the offender is briefed and has30 days to pay the imposed fine. If the fine is not paid within 30 days, the offender is notified, via mail, by the CVB of their court date.

4.6.8.7. **(Added)** The statement of probable cause on Copy 1 (white copy) of USDCVN must be completed/used IAW U.S. Magistrate Court and 366 FW/JA policies. A statement of probable cause is required by the federal misdemeanor rules to support the issuance of a

summons or arrest warrant. The on-duty 366 SFS Flight Chief or 366 SFS/S3O will review the USDCVN for accuracy and then forward it to A7SR **Note:** Once the USDCVN is issued to the offender, changes cannot be made.

4.6.8.8. **(Added)** After the notice is issued, the patrolman will brief the violator that they may rebut the citation by submitting a rebuttal letter articulating his/her position through 366 FW/A7SR Section, Bldg. 512, room 2002B within 5 days of receipt of citation. If the violator does not notify A7SR within the prescribed time frame the following disposition is mandatory:

4.6.8.8.1. **(Added)** The original copy (white & pink copies) will be forwarded to S7SR. The violation will be Added to members driving record via AFJIS. A7SR will then notify/provide copy of the violation and any traffic reports to the offender's First Sergeant, Commander, supervisor, or 366 CONS (for contractors) of the violation. Commanders, First Sergeants, or supervisors at any time may request a copy of the USDCVN/report from A7SR.

4.6.8.8.2. **(Added)** A7SR will then forward the original copy (white copy) to 366 FW/JA who will then mail citation to U.S. Central Violations Bureau at P.O. Box 780549, San Antonio, TX 78278-0549.

4.6.8.8.3. **(Added)** A7SR will file copy 3 (pink) in the sections file plan. A7SR will then assess points IAW paragraph 4.6.7.8., as applicable, to the citation in AFJIS.

4.6.8.8.4. **(Added)** If a violation notice has been issued in error, it may only be voided for two reasons. The DFC is responsible to the U.S. Magistrate's Court and only voids violation notices in cases of mistaken identity of person or obvious legal error. Additionally, the agency must possess all copies of the violation notice before being voided by the DFC. If the agency is still in possession of all copies, the violation notice will be voided by the DFC. This ensures the integrity of the ticket issuing process. All spoiled tickets will be disposed of according to the guidelines furnished by the court.

4.6.8.8.5. **(Added)** A written statement signed by the DFC, from the agency requesting a violation notice(s) dismissal or void must be forwarded to the CVB via mail or e-mailed to the following address: **cvb@cvb.uscourts.gov.**

4.6.8.8.6. **(Added)** Offenders who receive a USDCVN may rebut the ticket through the U.S. Magistrate Court System.

4.7. **(Added) Traffic Law Enforcement Principals.**

4.7.1. **(Added)** The goal of enforcement of the installation traffic code is to motivate drivers to operate vehicles safely within traffic laws and regulations and maintain an effective and efficient flow of traffic. Effective enforcement should emphasize selective enforcement and voluntary compliance by drivers and is further achieved by the following actions:

4.7.1.1. **(Added)** Publishing a realistic traffic code well known by all personnel.

4.7.1.2. **(Added)** Adopting standard signs, markings, and signals in accordance with NHSPS and the Manual on Uniform Traffic Control Devices for Streets and Highways.

4.7.1.3. **(Added)** 366 SFS/S3OT is responsible for ensuring personnel assigned to the 366 SFS are properly trained in establishing courteous, personal contact with drivers and act promptly when driving behavior is improper or a defective vehicle is observed in operation; and to use

sound discretion and judgment in deciding when to apprehend, issue citations, or warn the offender.

4.7.1.4. **(Added)** 366 SFS/S3OT maintains an aggressive program to train SF members to detect and apprehend individuals whose driving privileges are suspended or revoked. This program includes checking drivers name against DBIDS and the Suspension, Revocation and Barment roster when conducting random checks at the main gate, during all traffic stops and when issuing visitor passes to determine if the individual driving privileges have been suspended or revoked.

4.7.2. **(Added)** Selective enforcement will be used when practical. Selective enforcement deters traffic violations and reduces accidents by the presence or suggested presence of SF personnel at places where violations, congestion, or accidents frequently occur. Selective enforcement applies proper enforcement measures to traffic congestion and focuses on selected time periods, conditions, and violations that cause accidents. SF personnel use selective enforcement because that practice is the most effective use of resources.

4.7.3. **(Added)** Enforcement activities against intoxicated driving will include:

4.7.3.1. **(Added)** Training SF personnel in special enforcement standards, detection techniques, and equipment standards unique to MHAFB.

4.7.3.2. **(Added)** Training for detection, apprehension, and testing of persons suspected of DUI of alcohol or drugs is accredited under the Peace Officers Standards and Training (POST) Academy of Idaho.

4.7.3.3. **(Added)** Enforcing BAC/BrAC standards.

4.7.3.4. **(Added)** Denying installation-driving privileges to those whose use of alcohol or drugs prevents their safe operation of a motor vehicle.

4.7.4. **(Added)** Selective enforcement will be determined by the DFC. The DFC will establish procedures to evaluate traffic violations and vehicle accidents to reduce traffic accidents and deaths. Results of analysis should be provided to the Base Traffic Board, Safety, and SF patrols.

4.8. **(Added) Detection, Apprehension, and Testing of Intoxicated Drivers.** Most of the time, SF members will detect drivers by observing unusual or abnormal driving behavior. Stop these drivers and determine the cause of their unusual driving behavior.

4.8.1. **(Added)** If SF personnel reasonably conclude an individual in control of the vehicle is impaired, they will perform field sobriety tests. The DD Form 1920, *Alcohol Incident Report,* will be used in examining, interpreting, and recording results of such tests.

4.8.1.1. **(Added)** 366 SFS personnel will administer the Standardized Field Sobriety Test (SFST), consisting of the Horizontal Gaze Nystagmus (HGN), Walk and Turn, and One Leg Stand tests pursuant to a lawful stop. **NOTE:** According to the National Highway and Traffic Safety Administration (NHTSA) standards, if there is not a person certified to administer the HGN, utilize the Finger to Nose test in place of the HGN.

4.8.1.2. **(Added)** Failure to submit to the SFST does not constitute a violation of Implied Consent. If the individual refuses to complete the SFST, the refusal will be annotated on the DD Form 1920 and the SF member will record all evidence of impairment (e.g., SF member's

observation of the suspect's actions) on the DD Form 1920. In these cases, the SF member's observations can be used in place of the SFST.

4.8.2. **(Added)** Chemical Testing Policies and Procedures.

4.8.2.1. **(Added)** Results of chemical testing are valid only under the following circumstances.

4.8.2.1.1. **(Added)** Qualified personnel administer breath tests.

4.8.2.1.2. **(Added)** The 366 MDSS/SGSL administers the Enzymatic or Amstel's Test (commonly known as the blood alcohol test) and the urinalysis test (for drugs). These type of tests are the accepted scientific and medical methods used to check for alcohol and drug concentration levels.

4.8.2.2. **(Added)** Chemical tests of personnel involved in fatal accidents.

4.8.2.2.1. **(Added)** MDSS/SGSL will immediately notify the 366 SFS and 366 FSS Mortuary Affairs (366 FSS/FSOXU) and make contact with the Elmore County Coroner, per established MOU, of any deaths involving military members subject to military jurisdiction involved in a motor vehicle accident and the circumstances surrounding such as accident.

4.8.2.2.2. **(Added)** Medical authorities will examine the bodies of those persons killed in a motor vehicle accident to include drivers, passengers, and pedestrians subject to military jurisdiction. They will also examine the bodies of dependents, who are 16 years of age or older, with sponsors consent. Tests for the presence and concentration of alcohol or other drugs in the person's blood, bodily fluids, or tissues will be made as soon as possible and where practical within eight hours of death. The test results will be included in the medical reports.

4.8.2.3. **(Added)** As provided by law and medical conditions permitting, obtain a blood or breath sample from any surviving operator whose vehicle was involved in a fatal accident.

4.8.3. **(Added)** Voluntary Breath and Bodily Fluid Testing Based on Implied Consent.

4.8.3.1. **(Added)** Implied consent policy is explained in para **2.3**

4.8.3.2. **(Added)** Individuals are subject to chemical testing if they were lawfully stopped while driving or in physical control of a motor vehicle on MHAFB or there is reasonable suspicion to believe the person was driving under the influence of alcohol or drugs.

4.8.3.3. **(Added)** SF personnel will advise the driver that the 366 FW/CC or designee may revoke driving privileges if they fail to voluntarily submit to or complete a requested chemical test and they do not have the right to have an attorney present before deciding if they will or will not take the test.

4.8.3.4. **(Added)** SF personnel will advise the driver that the results of breath tests conducted under the implied consent provisions of this instruction can be used as evidence in courts-martial, non-judicial proceedings under Article 15 of the UCMJ, administrative action, or civil court proceedings.

4.8.3.5. **(Added)** If the individual consents to a breath test, a certified Lifeloc FC 20 Breathalyzer operator will complete a breath test. The test will be completed IAW approved procedures as indicated in local instructions.

4.8.3.6. **(Added)** If the individual consents to the test, and a breath test cannot be conducted, the 366 FW/CC has prescribed the authorized chemical tests to be administered by the 366

MDSS/SGSL is the Enzymatic or Amstel's Test (commonly known as the blood alcohol test) and the urinalysis (for drugs).

4.8.3.6.1. **(Added)** 366 MDSS/SGSL personnel will extract a sample of blood, witnessed by SF personnel, and conduct the blood alcohol testing IAW establish standards. Once the results are returned they are kept as evidence with the chain-of-custody maintained until the results are picked up by 366 SFS/S3O, on-duty Flight Chief, and/or other designated personnel as appointed in writing by the DFC

4.8.3.6.2. **(Added)** Special rules exist for persons who have hemophilia, other blood-clotting disorders, or medical or surgical disorders under treatment with an anticoagulant. Such personnel may refuse a blood extraction without penalty, but the SF member can offer a breath or urine test, or both. The laboratory technician must outline these procedures and the type of medical conditions that qualify for non-punitive refusal in readily available medical guidelines located in emergency rooms or other reasonable areas where blood samples might be drawn from those suspected of intoxicated driving. Valid refusals must have the concurrence of a medical doctor.

4.8.3.6.3. **(Added)** If a person suspected of intoxicated driving refuses to submit to a chemical test, SGSL will not administer a test except as specified in **4.8.4**

4.8.3.7. **(Added)** Individuals refusing to submit or to complete a test to measure their BAC/BrAC, or to determine the presence of drugs or other intoxicating substances, will have their MHAFB driving privileges automatically revoked for one year, regardless of their military affiliation. This is an administrative revocation based on the withdrawal of Implied Consent.

4.8.3.7.1. **(Added)** Individuals are also subject to additional revocation based on evidence they were operating, or in physical control of a motor vehicle while under the influence of alcohol, illegal narcotics, prescription drugs, or other intoxicating substances.

4.8.3.7.2. **(Added)** Violations of the Implied Consent Law by individuals subject to the UCMJ are referred to their Commander for action via AFJIS/AF Form 3545.

4.8.3.7.3. **(Added)** Offenders of the Implied Consent Law by individuals not subject to the UCMJ are referred to 366 FW/JA and 366 FW/CC or designee for prosecution in U.S. Magistrate Court, and revocation of MHAFB driving privileges via AFJIS/AF Form 3545.

4.8.3.8. **(Added)** If the suspect is intoxicated to a point where he/she cannot understand the Implied Consent policy, the SF member can either attempt to get Authority to Search the individual's breath, via AF Form 1176, or complete the apprehension process without a breath test. If no test is given for this reason, the SF member must ensure it is annotated in the AF Form 3545/AFJIS Incident Report.

4.8.3.9. **(Added)** Persons in a condition rendering them incapable of refusal (e.g., dead or unconscious) will be deemed not to have withdrawn their consent. In these situations, such tests may be administered whether or not the suspect is told that failure to submit or complete the test could result in revocation of their privilege to operate motor vehicles on MHAFB. An AF Form 1176 must be completed and search authorization must be obtained.

4.8.4. **(Added)** Involuntary Extraction of Bodily Fluids in Traffic Cases.

4.8.4.1. **(Added)** These procedures pertain only to the investigation of individuals stopped, apprehended, or cited on a military installation for any offense related to driving a motor vehicle and for whom probable cause exists to believe that such individual is intoxicated. Rule 312,

Military Rules of Evidence, and regulatory rules concerning requesting and granting authorizations for searches govern the extraction of body fluids in furtherance of other kinds of investigations. Air Force policy on nonconsensual extraction of blood samples are further addressed in AFI 44-102, *Medical Care Management.*

4.8.4.2. **(Added)** Involuntary bodily fluid extractions (blood or urine) require valid search and seizure authorizations. A person subject to the UCMJ who does not consent to chemical testing, and who subsequently refuses a lawful order to surrender to the test, may nonetheless be forced to submit to an involuntary extraction of bodily fluids. As a rule, forced extractions are considered only when an individual is involved in an accident in which there is a death, serious personal injury, or significant property damage. Probable cause must exist to believe the individual was driving or was in control of a vehicle while under the influence of an intoxicant. 366 MDSS/SGSL will conduct the extraction in accordance with a search authorization authorized by an appropriate magistrate, obtained pursuant to Rule 315, Military Rules of Evidence. Coordinate with 366 FW/JA if the magistrate is unavailable.

4.8.5. **(Added)** Testing at the Request of the Apprehended Person.

4.8.5.1. **(Added)** A person subject to tests under **2.3** can request additional testing. These tests are paid for by the requesting individual, and an approved facility such as an off-base hospital or research laboratory performing the tests. If they desire admissibility of other tests in a military or civilian court of law, they must ensure the state approves the test and test method. The person desiring the additional testing will complete all tests as soon as possible, noting any delay on the resulting documents.

4.8.5.2. **(Added)** If someone requests additional testing, the apprehending SF member may help make those arrangements. However, tests conducted under the authority of the UCMJ remain valid when circumstances prevent timely release of the individual, or for whatever reason additional testing is not completed.

4.8.6. **(Added)** As a minimum, DFC has tasked 366 SFS/S3OT to ensure SF personnel are trained to do the following:

4.8.6.1. **(Added)** Recognize signs of alcohol and other drug impairment in persons operating motor vehicles.

4.8.6.2. **(Added)** Determine to a reasonable and practical degree when a person appears intoxicated, but is actually physically or mentally ill and requires prompt medical attention.

4.8.6.3. **(Added)** Prepare a DD Form 1920 and statement.

4.8.6.4. **(Added)** Perform SFSTs. The SFSTs set by NHTSA consists of the One Leg Stand, the Walk and Turn, the Finger to Nose test, and the HGN.

4.8.6.5. **(Added)** Understand the operation of breath-testing devices.

4.8.6.6. **(Added)** Document DUI incidents using AFJIS/AF Form 3545 to ensure accurate reporting.

4.9. **(Added) Blood Alcohol Concentration Standards.** An evidentiary test for alcohol concentration shall be based upon a formula of grams of alcohol per 100 cubic centimeters of blood, per 210 liters of breath (utilizing the Lifeloc FC 20 Portable Breathalyzer IAW AFI 31-218(I), *Motor Vehicle Traffic Supervision* and Idaho State Statutes) or 67 milliliters of urine.

4.9.1. **(Added)** Uniformly apply administrative revocation of driving privileges and other enforcement measures to offenders driving under the influence of alcohol or drugs. When a person is tested per **2.3**, evaluate the results of the test as follows:

4.9.1.1. **(Added)** If there is evidence of physical impairment, the individual(s) will be referred for a medical evaluation, which should include testing for drugs or intoxicating substances.

4.9.1.2. **(Added)** If the percentage of alcohol in the person's blood is less than 0.05 percent, presume the person is not under the influence of alcohol.

4.9.1.3. **(Added)** If the percentage is 0.05 percent, but less than 0.08 percent, presume the person is impaired. The investigating SF member will consider this standard with other competent evidence (i.e. SFSTs/HGN results) in determining whether the person was under the influence of alcohol and annotate determining factors in report. A7SR will submit a Revocation/Suspension Letter IAW this instruction and the individual's driving privileges will be suspended IAW **Table 2.1**

4.9.1.4. **(Added)** If the percentage is 0.08 percent or more, or if tests reflect the presence of illegal drugs, the person is considered to have been driving under the influence of intoxicants. Commanders will suspend driving privileges IAW **2.5.1**

4.9.2. **(Added)** The following standards will be applied for determining intoxicants for specific categories of individuals.

4.9.2.1. **(Added)** For commercial vehicle operators, if the percentage of alcohol in the individual's blood is 0.04 percent or greater, the person is considered to have been driving under the influence.

4.9.2.2. **(Added)** For minors (under 21 years of age), if the percentage of alcohol in the individual's blood is 0.02 or greater, the person is considered to have been driving under the influence of alcohol. Violations of this provision will also constitute underage consumption of alcohol.

4.10. **(Added) Compliance with Local and State Laws.**

4.10.1. **(Added)** The 366 FW/CC or designee will ensure drivers comply with state and local traffic laws while operating GMVs on and off the installation.

4.10.2. **(Added)** Commanders of respective units will coordinate with the proper civil law enforcement agency before moving government vehicles or property, which require special handling or exceed limits such as weight, length, width, or other standards.

4.10.3. **(Added)** The 366 FW/CC or designee, through 366 SFS maintains a close liaison with civilian law enforcement agencies by encouraging the following:

4.10.4. **(Added)** When possible, the prompt release of GMVs and operators involved in accidents or incidents.

4.10.5. **(Added)** Prompt notice to military authorities when military personnel or drivers of GMVs are involved in traffic accidents or detained for serious violations of civil traffic laws.

4.10.6. **(Added)** Prompt notice of any state or local action to suspend, revoke, or restrict the driving privileges of personnel assigned to or attached to MHAFB.

4.11. **(Added) Civil-Military Cooperative Programs.**

4.11.1. **(Added)** The State-Armed Forces Traffic Workshop Program is an organized effort to coordinate military and civil traffic safety activities throughout the area surrounding MHAFB. Installation Commanders will cooperate with State and local officials in this program and provide proper support and participation.

4.11.2. **(Added)** Community-Installation Traffic Workshop Program. The 366 FW/CC should establish a local workshop program to coordinate the installation traffic efforts with those of local communities. Sound and practical traffic planning depends on a balanced program of traffic enforcement, engineering, and education. Civilian and military legal and law enforcement officers, traffic engineers, safety officials, and public affairs officers should take part.

4.11.3. **(Added)** The Installation Traffic Safety Control Board also serves as an integral part of the community-installation traffic workshop program. Sound and practical traffic planning depends on a balanced program of traffic enforcement, engineering, and education.

4.12. **(Added) Speed Measuring Devices.** SF personnel will utilize speed-measuring devices in traffic control studies and enforcement programs. Signs to indicate the use of speed-measuring devices are posted on the installation informing vehicle operators of their use. **Note:** Radar is used as an all-inclusive term for speed measurement devices.

4.12.1. **(Added)** SF personnel will receive formal training and certification from 366 SFS/S3OT instructors on speed-measuring devices that meets the requirements of the State of Idaho.

4.12.2. **(Added)** Training and certification standards:

4.12.2.1. **(Added)** The DFC should strive to ensure operators of speed-measuring devices meet training and certification requirements prescribed by the State of Idaho. Obtain specific information on course dates, costs, and prerequisites for attending by contacting the POST Academy of Idaho.

4.12.2.1.1. **(Added)** The DFC may establish other local training and certification programs for operators of speed-measuring devices. If this option is exercised, DFC must ensure the qualification and training standards are admissible as evidence, considered reliable by both military and civil authorities and meets the standards set forth by the POST Academy of Idaho. This requirement applies to courts-martial, non-judicial proceedings, and civilian courts used to prosecute civilian offenders. Coordination between 366 FW/JA and the Idaho State Attorney General's office is necessary.

4.12.2.1.2. **(Added)** 366 SFS/S3OT will ensure operators of speed-measuring devices attend formal training, and are locally certified by competent authorities.

4.12.2.2. **(Added)** 366 SFS/S3OT will develop a local training program if SF personnel are unable to attend local or state-sponsored radar certification courses.

4.12.2.3. **(Added)** 366 SFS/S3OT will ensure operators are recertified, at a minimum of every three years. 366 SFS/S3OT will document and maintain certification and training standards in AFTR.

4.12.2.4. **(Added)** The objective of the courses is to improve the effectiveness of speed enforcement through the proper and efficient use of speed-measurement radar. On successful completion, the course graduate must know how to:

4.12.2.4.1. **(Added)** Describe the association between excessive speed and accidents, deaths, injuries, and the safety benefits of effective speed control.

4.12.2.4.2. **(Added)** Describe the basic principles of radar speed measurement.

4.12.2.4.3. **(Added)** Identify and describe Air Force speed measurement and speed enforcement policy and procedures.

4.12.2.4.4. **(Added)** Identify the specific radar instrument used and describe the instrument's major components and functions.

4.12.2.4.5. **(Added)** Demonstrate basic skills in calibrating and operating the specific radar instrument.

4.12.2.4.6. **(Added)** Demonstrate basic skills in preparing and presenting records and courtroom testimony relating to radar speed measurement and enforcement.

4.12.2.5. **(Added)** 366 SFS/S3OT will use the following sources in local training and certification programs:

4.12.2.5.1. **(Added)** State or local training guides, plans, and procedures.

4.12.2.5.2. **(Added)** Published techniques for radar speed detection and legal aspects of speed-measuring devices by the NHTSA and the International Association of Directors of Law Enforcement Standards and Training.

Table 5.1. (Added) Point Assessment for Moving Violations.

Violation	Points Assessed
Reckless driving (willful and wanton disregard for the safety of persons or property) ***(IAW AFI 31-218(I), Table 5-2)***	6
Owner knowingly and willfully permitting a physically impaired person to operate the owner's motor vehicle ***(IAW AFI 31-218(I), Table 5-2)***	6
Fleeing the scene (hit and run)–property damage only ***(IAW AFI 31-218(I), Table 5-2)***	6
Driving vehicle while impaired (BAC more than 0.05 percent and less than 0.08 percent) ***(IAW AFI 31-218(I), Table 5-2)***	6
Speed contests ***(IAW AFI 31-218(I), Table 5-2)***	6
Speed too fast for conditions ***(IAW AFI 31-218(I), Table 5-2)***	2
Speed too slow for traffic conditions, and/or impeding the flow of traffic, causing potential safety hazard ***(IAW AFI 31-218(I), Table 5-2)***	2
Failure of operator or occupants to use available restraint system devices while moving (operator assessed points) ***(IAW AFI 31-218(I), Table 5-2)***	2

Failure to properly restrain children in a child restraint system while moving (when child is 4 years of age or younger or the weight of child does not exceed 45 pounds) ***(IAW AFI 31-218(I), Table 5-2)***	2
One to 10 miles per hour over posted speed limit ***(IAW AFI 31-218(I), Table 5-2)***	3
Over 10 but not more than 15 miles per hour above posted speed limit ***(IAW AFI 31-218(I), Table 5-2)***	4
Over 15 but not more than 20 miles per hour above posted speed limit ***(IAW AFI 31-218(I), Table 5-2)***	5
Over 20 miles per hour above posted speed limit ***(IAW AFI 31-218(I), Table 5-2)***	6
Following too close ***(IAW AFI 31-218(I), Table 5-2)***	4
Failure to yield right of way to emergency vehicle ***(IAW AFI 31-218(I), Table 5-2)***	4
Failure to stop for school bus or school–crossing signals ***(IAW AFI 31-218(I), Table 5-2)***	4
Failure to obey traffic signals or traffic instructions of an enforcement officer or traffic warden; or any official regulatory traffic sign or device requiring a full stop or yield of right of way; denying entry; or requiring direction of traffic ***(IAW AFI 31-218(I), Table 5-2)***	4
Improper passing ***(IAW AFI 31-218(I), Table 5.2)***	4
Failure to yield (no official sign involved) ***(IAW AFI 31-218(I), Table 5-2)***	4
Improper turning movements (no official sign involved) ***(IAW AFI 31-218(I), Table 5-2)***	3
Wearing of headphones/earphones while driving motor vehicles (two or more wheels) ***(IAW AFI 31-218(I), Table 5-2)***	3
Failure to wear an approved helmet while operating or riding on a motorcycle, MOPED, or a three or four– wheel vehicle powered by a motorcycle–like engine ***(IAW AFI 31- 218(I), Table 5-2)***	3
Improper overtaking ***(IAW AFI 31-218(I), Table 5-2)***	3
Other moving violations (involving driver behavior only) ***(IAW AFI 31-218(I), Table 5-2)***	3
Operating an unsafe vehicle. **See Note #2** ***(IAW AFI 31-218(I), Table 5-2)***	2
Driver involved in accident is deemed responsible (only Added to points assessed for specific offenses) ***(IAW AFI 31-218(I), Table 5-2)***	1

Driving/permitting the operation of an uninsured vehicle **See Note #3 (Added)**	6
Driving with an expired state issued Driver License. **(Added)** ***NOTE: Refer Table 2-1 (this publication) for driving with a expired license***	6
Speeding in posted work zone (sign must be posted at beginning of the work zone the fact that the area is a "work zone", and a sign must be posted at the end of the area, signifying where the "work zone" ends). **(Added)**	6
Fail to stop prior to exiting from parking lot. **(Added)**	3
Failure to maintain lane. **(Added)**	3
Impeding the normal and reasonable flow of traffic (not including farm tractors or other heavy equipment). **(Added)**	3
Owner knowingly and willfully permitting a physically impaired person to operate owner's motor vehicle. **(Added)**	3
Operating a radar detection device to indicate the presence of speed recording instruments or to transmit simulated erroneous speed (prohibited on DoD installations). **(Added)**	3
Failure to display license plate. **(Added)**	2
Failure to control pet. **(Added)**	1
Littering from a motor vehicle. **(Added)**	1
Distracted driving (any non-driving activity a person engages in that has the potential to distract him or her from the primary task of driving and increases the risk of crashing) (ADDED) ***NOTE:*** This includes but is not limited to: texting, Face-Timing, or cell phone use (talking without use of hands free device).	6
Notes: ***1.*** When two or more violations are committed on a single occasion, points may be assessed for each individual violation. ***Refer AFI 31-218(I), Table 5-2*** 2. This measure should be used for other than minor vehicle safety defects or when a driver or registrant fails to correct a minor defect (for example, a burned out headlight not replaced within the grace period on a warning ticket). ***Refer AFI 31-218(I), Table 5-2***	

5.2.1. **(Added)** Distribute citations and process point assessments IAW AFI 31-115.

5.2.1.1. **(Added)** Reports of moving and non-moving traffic violations recorded on DD Form 1408 or USDCVN will serve as a basis for determining point assessment.

5.2.1.2. **(Added)** Upon receipt of the report of violation via DD Form 1408, A7SR will assess the number of points appropriate for the offense, and record the traffic points or the suspension or revocation of driving privileges on the person's driving record.

5.2.2. **(Added)** The 366 FW/CC or designee may require the following driver improvement measures as appropriate:

5.2.2.1. **(Added)** Advisory letter through the Unit Commander, First Sergeant, or supervisor to any person who has acquired six traffic points within a six month period.

5.2.2.2. **(Added)** Counseling or driver improvement interview, by the Unit Commander, of any person who has acquired more than six but less than 12 traffic points within a six month period. This counseling or interview should produce recommendations to improve driver performance.

5.2.2.3. **(Added)** Referral for medical evaluation when a driver, based on reasonable belief, appears to have mental or physical limits that have had or may have an adverse effect on driving performance.

5.2.2.4. **(Added)** Attending a remedial driver training to improve driving performance.

5.2.2.5. **(Added)** Referral to an alcohol or drug treatment or rehabilitation facility for evaluation, counseling, or treatment. This action is required for active military personnel in all cases in which alcohol or other drugs are a contributing factor to a traffic citation, incident, or accident.

5.2.3. **(Added)** Persons whose driving privileges are suspended or revoked (for one violation or an accumulation of 12 traffic points within 12 consecutive months, or 18 traffic points within 24 consecutive months) are notified in writing through official channels. Except for the mandatory minimum or maximum suspension or revocation periods prescribed by **Table 5.1,** the Installation Commander will establish periods of suspension or revocation. Any revocation based on traffic points must be no less than six months. A longer period may be imposed on the basis of a person's overall driving record considering the frequency, flagrancy, severity of moving violations, and the response to previous driver improvement measures. In all cases, military members must successfully complete a prescribed course in remedial driver training before driving privileges are reinstated. Suspension of driving privileges for a period of less than six months does not constitute authority to remove accumulated traffic points from AFJIS.

5.2.4. **(Added)** Points assessed against a person will remain in effect for point accumulation purposes for 24 consecutive months. The review of driver records to delete traffic points should be done routinely during records update while recording new offenses and forwarding records to new duty stations. Completion of a revocation based on points requires removal from the driver record of all points assessed before the revocation.

5.2.5. **(Added)** Removal of points does not authorize removal of driving record entries for moving violations, chargeable accidents, suspensions, or revocations. Record entries will remain posted on individual driving records for the period of time indicated below:

5.2.5.1. **(Added)** Chargeable nonfatal traffic accidents or moving violations-three years.

5.2.5.2. **(Added)** Non-mandatory suspensions or revocations-five years.

5.2.5.3. **(Added)** Mandatory revocations-seven years.

5.2.6. **(Added)** Traffic Point System. The traffic point system provides a uniform administrative device to impartially judge driving performance of motor vehicle operators on the installation. This system is not a disciplinary measure or a substitute for punitive action. Further, this system is not intended to interfere, in any way, with the reasonable exercise of the 366 FW/CC or designee's prerogative to issue, suspend, revoke, deny, or reinstate installation driving privileges.

5.2.7. **(Added)** Point System Application. Use of the point system applies to all personnel operating GMVs and POVs on MHAFB. The point system applies to military, civilian employees, dependents, and all other individuals subject to this instruction. Unless an individual submits a rebuttal, assess points according to **Table 5.1**

5.2.7.1. **(Added)** A citation may be contested by contacting A7SR in person within five duty days of the issue date on the citation. A7SR will provide instructions on rebuttal process.

5.2.7.2. **(Added)** Points assessed against a person will remain in effect for traffic point accumulation purposes for 24 consecutive months. A7SR routinely reviews driver records to delete traffic points during records update while recording new offenses and forwarding records to new duty stations. A7SR will remove all traffic points assessed against individual driving record at the end of the revocation.

5.3.1. **(Added)** The 366th Force Support Squadron/Force Management (366 FSS/FSMP) manages the Virtual Military Personnel Flight (vMPF) program and tracks all out-processing actions, assignments and separations for military personnel assigned to MHAFB. A7SR is notified via vMPF when a military member is out-processing or separating from service. Member will follow the requirements below:

5.3.1.1. **(Added)** During reassignment action, members must bring or email a copy of their orders to A7SR.

5.3.1.2. **(Added)** A7SR will forward/transfer the member's driving records, via AFJIS, and mail a copy of any active driving revocation or suspension packages to the members gaining unit.

5.3.1.3. **(Added)** Members transferring from other installations with suspended or revoked driving privileges will be notified in writing that their driving privileges will remain suspended or revoked for at least the original suspension or revocation. Individuals who have had limited driving privileges granted by their Installation Commander must have a copy of the granting memorandum immediately available when operating a motor vehicle on base.

5.3.1.4. **(Added)** Driving records of military personnel being discharged or released from active duty are retained on file for two years and then destroyed.

5.3.1.5. **(Added)** Driving records of civilian personnel terminating employment are retained on file for two years and then destroyed.

5.3.1.6. **(Added)** Any records of military family members over fifteen (15) years of age, containing point assessments or other entries are forwarded to the sponsor's gaining installation in the same manner as for sponsor.

5.3.1.7. **(Added)** Driving records of retirees electing to retain installation driving privileges are retained. Points accumulated or entries on the driver record regarding suspensions, revocations, moving violations, or chargeable accidents are not deleted from the driver's record except per **5.2.7**

5.3.2. **(Added)** The 366 FSS/FSMP manages the out-processing action for termination of employment for civilian employees using a hard copy out-processing checklist.

6.1. **(Added) Standards for Impoundment.** This chapter provides the standards and procedures for SF personnel when towing, inventorying, searching, impounding, and disposing of POVs. This policy is based on the interests of the Air Force in crime prevention, traffic safety, and the orderly flow of vehicle traffic movement as well as the vehicle owner's constitutional rights to due process, freedom from unreasonable search and seizure, and freedom from deprivation of private property.

6.1.1. **(Added)** Abandoned vehicle is defined as any vehicle that is illegally parked, unlicensed, unregistered, or derelict, whose owner cannot be contacted or who fails to move such a vehicle within 72 hours after it is cited for abandonment or illegal parking.

6.1.2. **(Added)** POVs should not be impounded unless the vehicles clearly interfere with ongoing operations or movement of traffic, threaten public safety or convenience, are involved in criminal activity, contain evidence of criminal activity, or are stolen or abandoned. The impoundment of a POV would be inappropriate when the following reasonable alternatives to impoundment exist.

6.1.2.1. **(Added)** Attempts should be made to locate the owner of the POV and have the vehicle removed.

6.1.2.2. **(Added)** The vehicle may be moved a short distance to a legal parking area and temporarily secured until the owner is found.

6.1.2.3. **(Added)** Another responsible person may be allowed to drive or tow the POV with permission from the owner, operator, or person empowered to control the vehicle. In this case, the owner, operator, or person empowered to control the vehicle will be informed that law enforcement personnel are not responsible for safeguarding the POV.

6.1.2.4. **(Added)** Owners/operators of vehicles that become inoperative on roadways will immediately notify 366 SFS and arrange for the removal of the vehicle as soon as possible.

6.1.3. **(Added)** Impounding of POVs is justified when any of the following conditions exist:

6.1.3.1. **(Added)** The POV is illegally parked.

6.1.3.1.1. **(Added)** On a street or bridge, in a tunnel, or is double parked and interferes with the orderly flow of traffic.

6.1.3.1.2. **(Added)** On a sidewalk, within an intersection, on a crosswalk, on a railroad track, in a fire lane, or is blocking a driveway, so that the vehicle interferes with operations or creates a security/safety hazard to other roadway users or the general public. An example would be a vehicle parked within 15 feet of a fire hydrant or blocking a properly marked driveway of a fire station or aircraft/alert crew facility.

6.1.3.1.3. **(Added)** When blocking an emergency exit door of any public place (installation theater, club, dining hall, hospital, and other facility).

6.1.3.1.4. **(Added)** In a "tow-away" zone that is marked with proper signs.

6.1.3.1.5. **(Added)** Driving drunk or impaired, driving under false pretenses, illegally obtaining a license or altered license, allowing an unlicensed person to operate a motor vehicle.

6.1.3.2. **(Added)** The POV interferes with:

6.1.3.2.1. **(Added)** Street cleaning or snow removal operations and attempts to contact the owner have been unsuccessful.

6.1.3.2.2. **(Added)** Emergency operations during a natural disaster or fire or must be removed from the disaster area during cleanup operations.

6.1.3.2.3. **(Added)** The POV has been used in a crime or contains evidence of criminal activity.

6.1.3.2.4. **(Added)** The owner or person in charge has been apprehended and is unable or unwilling to arrange for custody or removal.

6.1.3.2.5. **(Added)** The POV is mechanically defective and is a menace to others using the public roadways.

6.1.3.2.6. **(Added)** The POV is disabled by a traffic incident and the operator is either unavailable or physically incapable of having the vehicle towed to a place of safety for storage or safekeeping.

6.1.3.2.7. **(Added)** SF personnel reasonably believe the vehicle is abandoned.

6.1.4. **(Added)** The on-duty SF Flight Chief will determine if the vehicle will be driven or moved without the owner's consent if the owner cannot be contacted, or the owner refuses and conditions listed above are present.

6.2. **Procedures for Impoundment.** 366 SFS will staff such requests through the 366 FW/JA and DFC. When appropriate, 366 SFS will comply and support such requests and impound the vehicle for a reasonable period. 366 SFS will release the vehicle if civil authorities do not take custody of the vehicle within a reasonable period as determined by the 366 FW/CC or designated representative.

6.2.1. **(Added)** Unattended privately owned vehicles (POV):

6.2.1.1. **(Added)** SF personnel will conspicuously place the DD Form 2504, *Abandoned Vehicle Notice* on POVs that are considered abandoned or improperly unattended. One copy of the DD Form 2504 is placed on the vehicle, and the original is forwarded to 366th SFS/Investigation (366 SFS/S2I) for action. This action is documented by an entry in the SF blotter. Abandoned vehicles will also be issued a DD Form 1408, which is forwarded to the appropriate individual/agency for action. If the vehicle is registered to an individual with no military affiliation, a retired individual, or an individual who has departed MHAFB (e.g., PCS, separation), the citation is forwarded to 366 SFS/S2I for action.

6.2.1.2. **(Added)** The owner is allowed three days from the date the POV is tagged to remove the vehicle before impoundment action is initiated.

6.2.1.2.1. **(Added)** 366 SFS/S2I will request 366 LRS tow the vehicle to the impoundment lot. The vehicle impoundment lot for MHAFB is located adjacent to Family Camp. The office of primary responsibility for the impoundment lot is the 366 SFS/S2I section.

6.2.1.2.2. **(Added)** The 366 LRS temporary impoundment or towing of POVs for violations of the installation traffic code or involvement in criminal activities will be accomplished under the direct supervision of SF personnel.

6.2.1.3. **(Added)** After the vehicle is removed, 366 SFS/S2I will complete DD Form 2506, *Vehicle Impoundment Report,* as a record of the actions taken.

6.2.1.4. **(Added)** 366 SFS/S2I will perform a general inspection of the vehicle and complete an inventory of all personal property using a DD Form 2506, as witnessed by 366 LRS or other 366 SFS personnel. Use an AF Form 52, *Evidence Tag,* for receipt and storage of the vehicle, and the installation SF Member will complete a DD Form 2506 as record of the actions taken. The inventory of personal property is accomplished to protect the owner, 366 SFS, the towing contractor, and the Installation Commander.

6.2.1.5. **(Added)** The contents of a closed container such as a suitcase, inside the vehicle does not need to be inventoried, but is photographed. Such articles should be opened, only if necessary, to identify the owner of the vehicle, or if the container might contain explosives or otherwise present a danger to the public. Merely listing the container and sealing it with security tape will suffice.

6.2.1.6. **(Added)** 366 SFS/S2I will place personal property in a secure area for safekeeping. Locking the vehicle with positive key control satisfies this requirement.

6.2.2. **(Added)** The DD Form 2507, *Notice of Vehicle Impoundment,* is forwarded by certified mail to the address of the last known owner of the vehicle to advise the owner of the impoundment action, and to request information concerning the owner's intentions pertaining to the disposition of the vehicle. Assess standard sized abandoned vehicles (standard cars and trucks) a $50.00 hook-up fee, $4.00 per mile towing fee, and $25.00 per day storage fee. Assess large abandoned vehicles (motor homes, campers, trailers, and large trucks) a $50.00 hookup fee, $150.00 per hour towing fee, and a $25.00 per day storage fee. Funds for vehicles towed by the local towing company are paid directly to the towing company. Funds for vehicles towed by 366 LRS are turned into the 366th Comptroller Squadron, Disbursing Office (366 CPTS/FMFD) via DD Form 1131, *Cash Collection Voucher*.

6.2.2.1. **(Added)** If an attempt at repossession is made by a lienholder. Do not allow access to the installation for repossession at that time. SF personnel should contact 366 FW/JA for further guidance if referral of the complaint does not resolve the issue.

6.2.2.2. **(Added)** Refer the matter to the Base Property Disposal Board for abandoned property pursuant to DoDM 4160.21-V4, *Defense Materiel Disposition Manual.*

6.2.2.3. **(Added)** If the board reports the abandoned vehicle is to remain on the installation, after the expiration of 120 days from the date notice was sent to the owner at owner's last known address, SF personnel may ask the lienholder for copies of documents validating both its lien and default of the owner. Forward any documents received from the lienholder to 366 FW/JA for review.

6.2.2.4. **(Added)** If 366 FW/JA concludes the default appears to be valid and the lien is properly secured, the lienholder can be allowed access to the base, with a SF escort, to effectuate its right of repossession under Idaho Code Section §28-9-609(b). The SF member should only

escort the lienholder to and from the abandoned vehicle. Otherwise, they should stand by and take no part in the repossession activity.

6.2.3. **(Added)** Stolen POVs or vehicles involved in criminal activity.

6.2.3.1. **(Added)** 366 SFS/S2I will maintain vehicles in USAF custody when holding the POV for evidentiary purposes. The vehicle should remain in the custody of the USAF until law enforcement purposes are served.

6.2.3.2. **(Added)** 366 SFS/S2I will release recovered stolen POVs to the registered owner, unless held for evidentiary purposes, or to the law enforcement agency reporting the vehicle stolen, as appropriate.

6.2.4. **(Added)** Search Incident to Impoundment Based on Criminal Activity. Search of a POV in conjunction with impoundment based on criminal activity, will likely occur in one of the following general situations.

6.2.4.1. **(Added)** Owner or operator is not present. This situation could arise during traffic and crime-related impoundment and abandoned vehicle seizures. 366 SFS/S2I will not search the vehicle unless evidence or contraband is in plain view or is readily discernible on the outside as evidence of criminal activity. When in doubt, obtain proper search authority before searching.

6.2.4.2. **(Added)** Owner or operator is present. This situation can occur during a traffic or criminal incident, or if the operator is apprehended for a crime or serious traffic violation and sufficient probable cause exists to seize the vehicle. In some cases, the operator is present but is unwilling, incapacitated, or otherwise unable to make adequate arrangements to safeguard the vehicle. As a general rule, 366 SFS may search vehicles without search authority when there is a reasonable danger to police or public, there is a risk of loss or destruction of evidence or the search is reasonable under rules governing search incident to apprehension.

6.2.5. **(Added)** When a vehicle is impounded, 366 SFS will hold the vehicle for as long as necessary for evidentiary, law enforcement, or other legal purposes. Unless otherwise directed by competent authority, 366 SFS will release the vehicle and property when no longer needed for one of the reasons stated above. 366 SFS personnel will review Title 10, U.S.C. § 2575, *Disposition of Unclaimed Property,* DoDM 4160.21-V4, *Defense Materiel Disposition Manual,* before taking action to dispose of vehicles not claimed by the owner or an authorized agent.

RICHARD A. GOODMAN, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Title 10, U.S.C. § 2575, *Disposition of Unclaimed Property*

AFI 31-218(I), *Motor Vehicle Traffic Supervision,* 22 May 2006,

AFI 31-120, *Security Forced Systems and Administration*, 1 April 2015

DoDD 5525.4, *Enforcement of State Traffic Laws on DoD Installations,* 2 November 1981 DoDI 7730.47, *Defense Incident Based Reporting System (DIBRS),* 23 January 2014

DoDM 4140.01_V1, DoD , *DoD Supply Chain Materiel Management Procedures: Make and Maintain Materiel,* 10 February 2014

Title 10 U.S.C. § 8013, *Secretary of the Air Force*

Title 50 U.S.C. § 797, *Penalty for violation of security regulations and orders*

DoDM 4140.01_V1, DoD , *DoD Supply Chain Materiel Management Procedures: Make and Maintain Materiel*

DoDD 5525.4, *Enforcement of State Traffic Laws on DoD Installations,* 2 November 1981

DoDI 7730.47, *Defense Incident Based Reporting System (DIBRS),* 23 January 2014

DoD 4160.21M, *Defense Material Disposition Manual,* 18 August 1997

AFPD 31-1, *Integrated Defense,* 7 July 2009

AFI 44-121, *Alcohol and Drug Abuse Prevention and Treatment (ADAPT) Program,* 8 July 2014 AFMAN 33-363, *Management of Records,* 1 March 2008

AFI 44-102, *Medical Care Management,* 17 March 2015

AFI 31-115, *Security Forces Systems and Administrations*

AFI 31-118, *Security Forces Standards and Procedures,* 05 March 2014,

AFI 31-101, *Integrated Defense*, 8 October 2009,

AFI 31-101, *Integrated Defense*, 8 October 2009

AFI 31-118, *Security Forces Standards and Procedures,* 05 March 2014

AFI 31-218(I), *Motor Vehicle Traffic Supervision,* 22 May 2006

AFI 10-245, *Antiterrorism (AT)*, 25 June 2015

AFMAN, 32-1017, *DoD Transportation Engineering Program,* 17 November 2003

AFI 44-102, *Medical Care Management,* 1 May 2006

AFI 44-121, *Alcohol and Drug Abuse Prevention and Treatment (ADAPT) Program,* 8 July 2014

AFMAN 33-363, *Management of Records,* 1 March 2008

AFI 51-905, *Use of Magistrate Judges for Trial of Misdemeanors Committed by Civilians,* 30 Sept 2014

AFI 91-207*, USAF Traffic Safety Program,* 23 Mar 2015

DoD 4160.21M, *Defense Material Disposition Manual,* 18 August 1997 AFPD 31-1, *Integrated Defense,* 28 October 2011

Prescribed Forms

N/A

Adopted Forms

AF Form 533, *Certificate of Compliance - Private Motor Vehicle Registration,* 1 December 1984

AF Form 1313, *Driver Record*

AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card*

AF Form 75, *Visitor/Vehicle Pass* AF Form 3545*, Incident Report* AF Form 1315, *Accident Report*

CVB Form 1805, *United States District Court Violation Notice*

DD Form 1920, *Alcohol Incident Report*

DD Form 2220, *DoD Registered Vehicle Decal*

DD Form 1408, *Armed Forces Traffic Ticket*

DD Form 2220, *DoD Registered Vehicle Decal*

DD Form 2507*, Notice of Vehicle Impoundment*

AF Form 75, *Visitor/Vehicle Pass*

AF Form 3545*, Incident Report*

AF Form 1315, *Accident Report*

Abbreviations and Acronyms

AFJIS—Air Force Justice Information System

AFSFC—Air Force Security Forces Center

A7SR—Security Forces Administration and Reports

BAC—Blood Alcohol Concentration

BAT—Blood Alcohol Test

BrAC—Breath Alcohol Concentration

CE—Civil Engineer

CONUS—Continental United States

DFC—Defense Force Commander

DBIDS—Defense Biometric Identification System

DoD—Department of Defense

DoDD—Department of Defense Directive

DRMO—Defense Reutilization and Marketing Office

FO—Fixed Object

G—Government

GOV—Government Owned Vehicle MAJCOM—Major Command

MAJCOM—Major Command

MAJCOM/SF—Major Command Defense Force Commander

MJVA—Major Vehicle Accident

MTMCTEA—Military Traffic Management Command Transportation Engineering Agency

MVA—Motor Vehicle Accident

MWR—Morale, Welfare and Recreation NAF—Nonappropriated Fund

NAF—Nonappropriated Fund

NHSPS—National Highway Safety Program Standards NHTSA—National Highway Traffic Safety Administration NLD—No Liability Determined

NHTSA—National Highway Traffic Safety Administration

NLD—No Liability Determined

OCONUS—Outside Continental United States

ORV—Off Road Vehicle

P—Private

PCS—Permanent Change of Station PD—Property Damage

PD—Property Damage

PI—Personal Injury

POV—Privately Owned Vehicle

SJA—Staff Judge Advocate

U.S.C. §—United States Code

V—Vehicle

Attachment 3 (Added)

U.S. DISTRICT COURT VIOLATION NOTICE (USDCVN) FORFEITURE SCHEDULES

Table A3.1. (Added) U.S. District Court Violation Notice (USDCVN) Infraction Forfeiture Schedule.

NOTE: Ensure "32 C.F.R. 210" is printed on "Infraction" citations after the violation code in the top portion of the "OFFENSE CHARGED" box for the below listed infractions.		
Statute	**OFFENSE**	**FINE**
49-317 I	Violating a Restricted License	$50.00
49-329 I	Operating Vehicle under Out-of-State License While Suspended	$50.00
49-333 I	Permitting Unauthorized Person to Drive	$50.00
49-427 I	Fail to Carry Registration in Vehicle (Dismissed w/Proof)	$50.00
49-428 I	Fail to Properly Display License Plates	$50.00
49-456(1) I	Operate Motor Vehicle Not Registered	$50.00
49-456(2) I	Fictitious Display of Plates	$50.00
49-456(3) I	Lending / Permitting Another to Use Registration or License Plates	$50.00
49-602 I	Leave Motor Vehicle Unattended	$40.00
49-603 I	Unsafe Start of Parked Vehicle	$50.00
49-604 I	Improper Backing	$50.00
49-605 I	Driving on Sidewalk	$50.00
49-612 I	Obstructing Driver's View	$50.00
49-613 I	Littering on Highway	$40.00
49-625 I	Fail to Yield to Emergency Vehicle	$50.00
49-626 I	Following Fire Apparatus	$50.00
49-627 I	Crossing Fire Hose	$50.00
49-630 I	Driving on Wrong Side of Road	$50.00
49-632 I	Improper Passing	$50.00
49-635 I	Driving Left of Center	$50.00
49-636 I	Driving Wrong Way on One Way Road	$50.00
49-637 I	Driving on Highways Laned for Traffic	$50.00
49-638 I	Following Too Close	$50.00

49-640 I	Fail to Yield at Intersection	$50.00
49-641 I	Fail to Yield Turning Left	$50.00
49-642 I	Fail to Yield Entering Roadway	$50.00
49-644 I	Turning Violations	$50.00
49-645 I	Improper U-Turn	$50.00
49-654 I	Speeding – Maximum Speed Limitations	$50.00
49-655 I	Speed – Driving Too Slow	$50.00
49-657 I	Speeding in a Construction Danger Zone	$50.00
49-660 I	Stop, Stand, Park – Prohibited in Specific Places	$31.50
49-665 I	Improper Operations of Motorcycle	$50.00
49-666 I	No Helmet on Motorcycle – Under 18	$50.00
49-672 I	No Child Seat	$50.00
49-673 I	No Safety Restraint	$5.00
49-701 I	Pedestrian – Fail to Obey Traffic Control Device	$37.50
49-702 I	I Fail to Yield to Pedestrian	$50.00
49-801 I	Fail to Obey Traffic Control Device	$50.00
49-804 I	Fail to Obey Flashing Signal	$50.00
49-807 I	Stop Sign – Yield Sign Violations	$50.00
49-808 I	Signal – Fail to Signal Violations	$50.00
49-903 I	Fail to Use Head Lamps When Required	$50.00
49-914 I	Lamps Required on Parked Vehicles	$50.00
49-923 I	Fail to Dim Lights	$50.00
49-933 I	Equipment – Brakes	$40.00
49-937 I	Equipment – Muffler Violations	$40.00
49-940 I	Equipment – Mirrors	$40.00
49-943 I	Obstruction of Windshield	$50.00
49-944 I	Window Tinting Film Violations	$40.00
49-1229 I	Fail to Maintain Liability Insurance	$50.00
49-1232 I	Fail to Provide Proof of Liability Insurance	$50.00
49-1428 I	Operate Motor Vehicle without Insurance	$50.00

Table A3.2. (Added) U.S. District Court Violation Notice (USDCVN) Misdemeanor Forfeiture Schedule.

NOTE: Ensure "18 USC 13" is printed after the violation code in the top portion of the "OFFENSE CHARGED" box for the below listed misdemeanors.		
Statute	**OFFENSE**	**FINE**
18-8001 M	Driving without Privileges	$50.00
49-218 M	Operating Motor Vehicle as Emergency Vehicle	$50.00
49-227 M	Driving Vehicle without Owner's Consent	$50.00
49-229 M	Injuring or Destroying Vehicle	$50.00
49-230 M	Tampering with Vehicle	$50.00
49-301 M	Fail to Purchase Driver's License/Invalid D.L./No Motorcycle Endrse	$50.00
49-316 M	Fail to Carry Driver's License (Dismissed w/proof)	$50.00
49-331(1) M	Displaying Mutilated or Fictitious License	$50.00
49-331(2) M	Lending or Permitting Use of License by Another	$50.00
49-331(3) M	Displaying a License of Another as One's Own	$50.00
49-1301 M	Fail to Remain at Accident Scene	$50.00
49-1303 M	Fail to Notify Upon Striking Vehicle	$50.00
49-1304 M	Fail to Give Notice to Owner/Property Adj to Highway at Accident	$50.00
49-1305 M	Fail to Give Immediate Notice of Accident	$50.00
49-1308 M	Filing False Accident Report	$50.00
49-1401(1) M	Reckless Driving	$50.00
49-1401(3) M	Inattentive Driving	$50.00
49-1403 M	Knowingly Permit Operation of Vehicle Contrary to Law	$50.00
49-1404 M	Fleeing or Attempting to Elude a Police Officer	$50.00
49-1419 M	Fail to Obey Officer	$50.00
49-1421 M	Driving on Divided Highway	$50.00
49-1422 M	Passing Stopped School Bus	$50.00
49-1424 M	Racing on Public Highway	$50.00
49-1429 M	Altered Certificate Liability Insurance	$50.00
49-1430 M	Forged Liability Insurance Certificate	$50.00